

|                                                                                                                                                                                                                                                                                                                                                                                                                             |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|-----------------------------------------------------------------------------------------|-----------------------------------------------------------------------|-----------------------------------------------------------|------------------------------------------------------------------|
| <b>SOLICITATION, OFFER AND AWARD</b>                                                                                                                                                                                                                                                                                                                                                                                        |      |                                                                                                                        | 1. THIS CONTRACT IS A RATED ORDER<br>UNDER DPAS (15 CFR 700) |                                                                                         | RATING<br><b>DO-A7</b>                                                | PAGE OF PAGES<br><b>1 65</b>                              |                                                                  |
| 2. CONTRACT NO.                                                                                                                                                                                                                                                                                                                                                                                                             |      | 3. SOLICITATION NO.<br><b>ND003925R9510</b>                                                                            |                                                              | 4. TYPE OF SOLICITATION<br>[ ] SEALED BID (IFB)<br>[X] NEGOTIATED (RFP)                 | 5. DATE ISSUED<br><b>13 Jun 2025</b>                                  | 6. REQUISITION/PURCHASE NO.                               |                                                                  |
| 7. ISSUED BY<br>COMMANDER, NAVAL INFORMATION WARFARE<br>SYSTEMS COMMAND<br>02 CONTRACTS<br>4301 PACIFIC HIGHWAY<br>SAN DIEGO CA 92110-3127<br><br>TEL:<br>FAX:                                                                                                                                                                                                                                                              |      |                                                                                                                        |                                                              | 8. ADDRESS OFFER TO (If other than Item 7)<br><br><b>See Item 7</b><br><br>TEL:<br>FAX: |                                                                       |                                                           |                                                                  |
| NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".                                                                                                                                                                                                                                                                                                                                            |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| <b>SOLICITATION</b>                                                                                                                                                                                                                                                                                                                                                                                                         |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| 9. Sealed offers in original and <u>1</u> copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in _____ until _____ local time _____ (Hour) (Date)                                                                                                                                                                |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.                                                                                                                                                                                                                           |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| 10. FOR INFORMATION CALL:                                                                                                                                                                                                                                                                                                                                                                                                   |      | A. NAME<br><b>ANDREA M COHN</b>                                                                                        |                                                              | B. TELEPHONE (Include area code) (NO COLLECT CALLS)<br><b>(619) 208-1247</b>            |                                                                       | C. E-MAIL ADDRESS<br><b>andrea.m.cohn.civ@us.navy.mil</b> |                                                                  |
| <b>11. TABLE OF CONTENTS</b>                                                                                                                                                                                                                                                                                                                                                                                                |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| (X)                                                                                                                                                                                                                                                                                                                                                                                                                         | SEC. | DESCRIPTION                                                                                                            |                                                              | PAGE(S)                                                                                 | (X)                                                                   | SEC.                                                      | DESCRIPTION                                                      |
| <b>PART I - THE SCHEDULE</b>                                                                                                                                                                                                                                                                                                                                                                                                |      |                                                                                                                        |                                                              |                                                                                         | <b>PART II - CONTRACT CLAUSES</b>                                     |                                                           |                                                                  |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | A    | SOLICITATION/ CONTRACT FORM                                                                                            |                                                              | 1 - 2                                                                                   | X                                                                     | I                                                         | CONTRACT CLAUSES                                                 |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | B    | SUPPLIES OR SERVICES AND PRICES/ COSTS                                                                                 |                                                              | 3 - 4                                                                                   | <b>PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS</b>   |                                                           |                                                                  |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | C    | DESCRIPTION/ SPECS/ WORK STATEMENT                                                                                     |                                                              | 5 - 6                                                                                   | X                                                                     | J                                                         | LIST OF ATTACHMENTS                                              |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | D    | PACKAGING AND MARKING                                                                                                  |                                                              | 7                                                                                       | <b>PART IV - REPRESENTATIONS AND INSTRUCTIONS</b>                     |                                                           |                                                                  |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | E    | INSPECTION AND ACCEPTANCE                                                                                              |                                                              | 8                                                                                       | X                                                                     | K                                                         | REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | F    | DELIVERIES OR PERFORMANCE                                                                                              |                                                              | 9                                                                                       |                                                                       |                                                           |                                                                  |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | G    | CONTRACT ADMINISTRATION DATA                                                                                           |                                                              | 10 - 13                                                                                 | X                                                                     | L                                                         | INSTRS., CONDS., AND NOTICES TO OFFERORS                         |
| X                                                                                                                                                                                                                                                                                                                                                                                                                           | H    | SPECIAL CONTRACT REQUIREMENTS                                                                                          |                                                              | 14 - 18                                                                                 | X                                                                     | M                                                         | EVALUATION FACTORS FOR AWARD                                     |
| <b>OFFER (Must be fully completed by offeror)</b>                                                                                                                                                                                                                                                                                                                                                                           |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.                                                                                                                                                                                                                                                                                                       |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| 12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule. |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| 13. DISCOUNT FOR PROMPT PAYMENT<br>(See Section I, Clause No. 52.232-8)                                                                                                                                                                                                                                                                                                                                                     |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| 14. ACKNOWLEDGMENT OF AMENDMENTS<br>(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):                                                                                                                                                                                                                                                             |      |                                                                                                                        |                                                              | AMENDMENT NO.                                                                           |                                                                       | DATE                                                      |                                                                  |
|                                                                                                                                                                                                                                                                                                                                                                                                                             |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
|                                                                                                                                                                                                                                                                                                                                                                                                                             |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| 15A. NAME AND ADDRESS OF OFFEROR                                                                                                                                                                                                                                                                                                                                                                                            |      | CODE                                                                                                                   | FACILITY                                                     |                                                                                         | 16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print) |                                                           |                                                                  |
| 15B. TELEPHONE NO (Include area code)                                                                                                                                                                                                                                                                                                                                                                                       |      | 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.<br><input type="checkbox"/> |                                                              | 17. SIGNATURE                                                                           |                                                                       | 18. OFFER DATE                                            |                                                                  |
| <b>AWARD (To be completed by Government)</b>                                                                                                                                                                                                                                                                                                                                                                                |      |                                                                                                                        |                                                              |                                                                                         |                                                                       |                                                           |                                                                  |
| 19. ACCEPTED AS TO ITEMS NUMBERED                                                                                                                                                                                                                                                                                                                                                                                           |      |                                                                                                                        | 20. AMOUNT                                                   |                                                                                         | 21. ACCOUNTING AND APPROPRIATION                                      |                                                           |                                                                  |
| 22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION:<br><input type="checkbox"/> 10 U.S.C. 2304(c)( ) <input type="checkbox"/> 41 U.S.C. 253(c)( )                                                                                                                                                                                                                                                                 |      |                                                                                                                        |                                                              | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN ITEM (4 copies unless otherwise specified)      |                                                                       |                                                           |                                                                  |
| 24. ADMINISTERED BY (If other than Item 7) CODE                                                                                                                                                                                                                                                                                                                                                                             |      |                                                                                                                        |                                                              | 25. PAYMENT WILL BE MADE BY CODE                                                        |                                                                       |                                                           |                                                                  |
| 26. NAME OF CONTRACTING OFFICER (Type or print)<br><br>TEL: EMAIL:                                                                                                                                                                                                                                                                                                                                                          |      |                                                                                                                        |                                                              | 27. UNITED STATES OF AMERICA<br><br>(Signature of Contracting Officer)                  |                                                                       | 28. AWARD DATE                                            |                                                                  |

Section SF 30 - BLOCK 14 CONTINUATION PAGE

#### **NOTES TO OFFERORS**

Questions pertaining to the Request for Proposal (RFP) are due no later than 15 calendar days prior to the proposal submission due date in **Section L-204-HQ003 SUBMISSION OF ELECTRONIC PROPOSALS (NAVWAR) (APR 2025)**.

THIS SOLICITATION WILL RESULT IN AN INDEFINITE DELIVERY, INDEFINITE QUANTITY (IDIQ) MULTIPLE AWARD CONTRACT (MAC).

The multiple award contract not-to-exceed ceiling amount is \$452,900,000. The cumulative total of all Delivery Orders awarded as a result of this solicitation to all awardees will not exceed the total acquisition value of \$452,900,000 over the life of the contract.

#### **OFFERORS SHALL NOT PROVIDE PRICING FOR ANY CLINs IDENTIFIED IN SECTION B.**

Firm-Fixed-Price (FFP) delivery orders will be issued under this IDIQ MAC contract. As the contract is an IDIQ, no funding above the minimum guarantee is assured. Contract holders must pursue and receive Delivery Orders either through competitive or sole source procedures in order to receive funding above the guaranteed minimum.

## Section B - Supplies or Services and Prices

| ITEM NO     | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                | QUANTITY | UNIT | UNIT PRICE | AMOUNT              |
|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|---------------------|
| 0001<br>FFP |                                                                                                                                                                                                                                                                                                                                                                                                                  | 1        | Lot  |            | \$385,600,000 (NTE) |
|             | ADNS Production Units / Sub-Assemblies<br>Automated Digital Network System (ADNS) Production Units / Sub-Assemblies to include Hardware Systems (Surface, Submarines, Airborne, and MOCs), Ancillary Kits, Cyber Threat Upgrades (CTUs), Mission Focused Upgrades, Production Components and Lab Equipment in accordance with Attachment 1: ADNS MAC Statement of Work (SOW), paragraph 3.2.<br>FOB: Destination |          |      |            |                     |
|             |                                                                                                                                                                                                                                                                                                                                                                                                                  |          |      |            |                     |

| ITEM NO     | SUPPLIES/SERVICES                                                                                                                                     | QUANTITY | UNIT | UNIT PRICE | AMOUNT             |
|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------------------|
| 0002<br>FFP |                                                                                                                                                       | 1        | Lot  |            | \$31,100,000 (NTE) |
|             | ADNS Spares / System Components<br>ADNS System Spares in accordance with Attachment 1: ADNS MAC SOW, paragraphs 3.2, and 3.2.1.2.<br>FOB: Destination |          |      |            |                    |
|             |                                                                                                                                                       |          |      |            |                    |

| ITEM NO     | SUPPLIES/SERVICES                                                                                                                                         | QUANTITY | UNIT | UNIT PRICE | AMOUNT             |
|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------------------|
| 0003<br>FFP |                                                                                                                                                           | 1        | Lot  |            | \$36,220,000 (NTE) |
|             | Software<br>Software Initial, Renewals and Maintenance in accordance with Attachment 1: ADNS MAC SOW, paragraphs 3.2.1.5 and 3.2.1.6.<br>FOB: Destination |          |      |            |                    |
|             |                                                                                                                                                           |          |      |            |                    |

| ITEM NO     | SUPPLIES/SERVICES                                                                                                                       | QUANTITY | UNIT | UNIT PRICE | AMOUNT           |
|-------------|-----------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|------------------|
| 0004<br>FFP |                                                                                                                                         | 1        | Lot  |            | \$5,000.00 (NTE) |
|             | IDIQ Post-Award Conference<br>Post-Award Conference in accordance with Attachment 1: ADNS MAC SOW, paragraph 3.1.1.<br>FOB: Destination |          |      |            |                  |
|             |                                                                                                                                         |          |      |            |                  |

| ITEM NO     | SUPPLIES/SERVICES                                                                                                                                                                                                     | QUANTITY | UNIT | UNIT PRICE | AMOUNT                      |
|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|-----------------------------|
| 0005<br>FFP |                                                                                                                                                                                                                       | 1        | Lot  |            | Not Separately Priced (NSP) |
|             | CDRLs<br>DD1423, Contract Data Requirements (CDRL), Exhibit (A) (Not Separately Priced Line Item - Price included in the price of items 0001 - 0004 in accordance with ADNS SOW paragraph 3.1.4.)<br>FOB: Destination |          |      |            |                             |
|             |                                                                                                                                                                                                                       |          |      |            |                             |

#### **B-216-HQ001 TYPE OF CONTRACT (NAVWAR) (APR 2025)**

This contract is contemplated to be an Indefinite Delivery Indefinite Quantity (IDIQ) / Multiple Award Contract (MAC).

(End of text)

#### **B-216-HQ002 CONTRACT MINIMUM AND MAXIMUM QUANTITIES (NAVWAR) (APR 2025)**

As referred to in paragraph (b) of the FAR 52.216-22 "Indefinite Quantity" clause of this contract, the contract minimum quantity is \$5,000 under CLIN 0004 (IDIQ Post Award Conference). The maximum quantity is the total Not-to-Exceed (NTE) amount of the contract. The maximum quantity is not to be exceeded without prior approval of the Procuring Contracting Officer (PCO).

(End of text)

## Section C - Descriptions and Specifications

## CLAUSES INCORPORATED BY REFERENCE

252.239-7000 Protection Against Compromising Emanations

OCT 2019

**C-1 STATEMENT OF WORK / SPECIFICATIONS**

The work under this contract shall be performed in accordance with Attachment (1) – ADNS MAC Statement of Work (SOW) and specifications as defined in individual Delivery Orders.

**C-2 SECURITY REQUIREMENTS**

The work to be performed under this contract as delineated in Attachment (2) – ADNS MAC Security Classification DD Form 254, requires access to and handling of classified material up to and including SECRET. In addition to the requirements of the FAR 52.204-2 “Security Requirements” clause, the Contractor shall appoint a Security Officer, who shall (1) be responsible for all security aspects of the work performed under this contract, (2) assure compliance with the National Industry Security Program Operating Manual (DODINST 5220.22M), and (3) assure compliance with any written instructions from the NAVWARSSYSCOM Security Officer.

**C-211-HQ003 WORKWEEK (NAVWAR) (APR 2025)**

(a) The normal workweek for Government employees at Naval Information Warfare Systems Command (NAVWAR), Naval Information Warfare Center, Pacific (NIWC PAC) and Naval Information Warfare Center, Atlantic (NIWC LANT) is 0800 to 1600, with core hours from 0900 to 1400. Unless otherwise specified by individual delivery order(s), the contractor’s work shall be performed within the normal workweek. Pursuant to Federal law (5 U.S.C. 6103) the following public holidays are observed by the Government:

| Name of Holiday            | Time of Observance          |
|----------------------------|-----------------------------|
| New Year’s Day             | 1 January                   |
| Martin Luther King Jr. Day | Third Monday in January     |
| Washington’s Birthday      | Third Monday in February    |
| Memorial Day               | Last Monday in May          |
| Juneteenth                 | 19 June                     |
| Independence Day           | 4 July                      |
| Labor Day                  | First Monday in September   |
| Columbus Day               | Second Monday in October    |
| Veteran's Day              | 11 November                 |
| Thanksgiving Day           | Fourth Thursday in November |
| Christmas Day              | 25 December                 |

If any of the above public holidays fall on a non-workday -- Saturday or Sunday -- the holiday usually is observed on Monday (if the holiday falls on Sunday) or Friday (if the holiday falls on Saturday).

(b) NOTICE: Contractor employees who make repeated deliveries to military installations shall obtain the required accesscard via the Defense Biometric Identification System (DBIDS) system. Information about DBIDS can be found at: <https://dbids-global.dmdc.mil/enroll#!/>

Contractor employees must be able to obtain a DBIDS Card or Common Access Card (CAC) in accordance with base security requirements. When an employee leaves the Contractor's employ, the employee's Card shall be returned to the Contracting Officer's Representative or the base Badge and Pass Office within five (5) calendar days.

Contractors who do not have a DBIDS card or Common Access Card (CAC) must be issued a one-day pass daily at the Badge and Pass Office. Issuance of a CAC requires the need for physical access to the installation and logical access to government-owned computer systems.

(c) Periodically the Government may conduct Anti-Terrorism Force Protection (AT/FP) and/or safety security exercises which may require the Contractor to adjust its work schedule and/or place of performance to accommodate execution of the exercise. The Contractor will be required to work with its Government point of contact to adjust work schedules and/or place of performance in the case of an exercise that causes disruption of normally scheduled work hours, or disruption of access to a government facility. The contract does not allow for payment of work if schedules cannot be adjusted and/or the work cannot be executed remotely (i.e., the contractor's facility or alternate non-impacted location), during an exercise when government facilities are inaccessible.

(End of text)

#### **C-228-HQ001 LIABILITY INSURANCE – FIXED PRICE CONTRACTS (NAVWAR) (APR 2025)**

(a) The following types of insurance are required in accordance with the FAR 52.228-5 "Insurance—Work on a Government Installation" clause and shall be maintained in the minimum amounts shown:

- (1) Workers' compensation and employers' liability: minimum of \$100,000
- (2) Comprehensive general liability: \$500,000 per occurrence
- (3) Automobile liability:   \$200,000 per person  
                                      \$500,000 per occurrence  
                                      \$ 20,000 per occurrence for property damage

(b) Upon notification of contract award, the contractor shall furnish to the Contracting Officer, as required by paragraph (b) of the FAR 52.228-5 "Insurance—Work on a Government Installation" clause, a certificate or written statement of insurance prior to commencement of work under this contract. The written statement of insurance must contain the following information: policy number, policyholder, carrier, amount of coverage, dates of effectiveness (i.e., performance period), and contract number. The contract number shall be cited on the certificate of insurance.

(End of text)

## Section D - Packaging and Marking

**D-1 MARKING OF SHIPMENT**

Each shipment of material and/or data shall be clearly marked to show the following information:

SHIP TO:

MARK FOR:

RECEIVING OFFICER

Contract #: \_\_\_\_\_

Delivery Order #: \_\_\_\_\_

Item #: \_\_\_\_\_

Receiving Officer Code: \_\_\_\_\_

\*To be applied at the Delivery Order level.

**D-2 PACKAGING AND MARKING OF TECHNICAL DATA**

Technical Data and Information shall be delivered in accordance with the requirements of the CDRL, DD Form 1423, Exhibit A attached hereto, and the following:

- (a) The Contractor shall concurrently deliver technical data and information per DD Form 1423, Blocks 12 and 13 (date of first/subsequent submission) to all activities listed in Block 14 of the DD Form 1423 (distribution and addresses) for each item. Complete addresses for the abbreviations in Block 14 are shown in paragraph (g) below. Additionally, the technical data shall be delivered to the following cognizant codes, who are listed in Block 6 of the DD Form 1423: TO BE PROVIDED IN INDIVIDUAL DELIVERY ORDERS.
- (b) Partial delivery of data is not acceptable unless specifically authorized on the DD Form 1423, or unless approved in writing by the PCO.
- (c) The Government review period provided on the DD Form 1423 for each item commences upon receipt of all required data by the technical activity designated in Block 6.
- (d) A copy of all other correspondence addressed to the Contracting Officer relating to data item requirements (i.e. status of delivery) shall also be provided to the codes reflected above and the technical activity responsible for the data item per Block 6, if not one of the activities listed above.
- (e) The PCO reserves the right to issue unilateral modifications to change the destination codes and addresses for all technical data and information at no additional cost to the Government.
- (f) Unless otherwise specified in writing, rejected data items shall be resubmitted within thirty (30) days after receipt of notice of rejection.
- (g) DD Form 1423, Block 14 Submittal Addresses: TO BE PROVIDED IN INDIVIDUAL DELIVERY ORDERS

## Section E - Inspection and Acceptance

## CLAUSES INCORPORATED BY REFERENCE

|           |                                           |          |
|-----------|-------------------------------------------|----------|
| 52.246-2  | Inspection Of Supplies--Fixed Price       | AUG 1996 |
| 52.246-11 | Higher-Level Contract Quality Requirement | DEC 2014 |
| 52.246-15 | Certificate of Conformance                | APR 1984 |
| 52.246-16 | Responsibility For Supplies               | APR 1984 |

**E-1 INSPECTION AND ACCEPTANCE OF CONTRACT DATA REQUIREMENTS**

Data items submitted under Letter of Transmittal shall be the responsibility of the initial addressee under Block 14 of DD Form 1423 as to review for adequacy and contract compliance. Where deficiencies or inadequacies are noted, the initial addressee should so advise the contractor by letter within a reasonable period of time with copies to the ACO and the cognizant Technical Office indicated in Block 6 of DD Form 1423.

The initial addressee shall advise the contractor with copy to ACO and the cognizant technical code in Block 6 of DD Form 1423 at such time as each data submission submitted by a Letter of Transmittal has been satisfactorily accomplished.

Inspection and acceptance of Data Items requiring shipment under DD Form 250 shall be made in accordance with Block 7 of DD Form 1423. Where acceptance is at destination and more than one addressee is shown in Block 14 of DD Form 1423, acceptance shall be the responsibility of the initial addressee.

Addressees other than the initial addressee shall be considered informational.

**INSPECTION AND ACCEPTANCE TERMS**

Supplies/services will be inspected/accepted at:

| CLIN | INSPECT AT  | INSPECT BY | ACCEPT AT   | ACCEPT BY  |
|------|-------------|------------|-------------|------------|
| 0001 | Destination | Government | Destination | Government |
| 0002 | Destination | Government | Destination | Government |
| 0003 | Destination | Government | Destination | Government |
| 0004 | Destination | Government | Destination | Government |
| 0005 | Destination | Government | Destination | Government |



## Section F - Deliveries or Performance

## CLAUSES INCORPORATED BY REFERENCE

|           |                               |          |
|-----------|-------------------------------|----------|
| 52.211-17 | Delivery of Excess Quantities | SEP 1989 |
| 52.242-15 | Stop-Work Order               | AUG 1989 |
| 52.242-17 | Government Delay Of Work      | APR 1984 |
| 52.247-34 | F.O.B. Destination            | JAN 1991 |

**F-1 TIME AND PLACE OF DELIVERY-- F.O.B. DESTINATION (CLINs 0001-0004)**

The destination, delivery schedule and delivery rate shall be as follows:

\*To be applied at the Delivery Order level.

## Section G - Contract Administration Data

**G-1 PAYMENT INSTRUCTION (PGI 204.7108)**

The payment office shall allocate and record the amounts paid to the accounting classification citations in the contract using the table below based on the type of payment request submitted (see DFARS Clause 252.232-7006, Wide Area WorkFlow Payment Instructions) and the type of effort:

| Contract/Order Payment Clause | Type of Payment Request | Supply | Service | Construction | Payment Office Allocation Method                                                                                                                                                                                                                                                                    |
|-------------------------------|-------------------------|--------|---------|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 52.232-16, Progress Payments  | Progress Payment*       | X      | X       | N/A          | Contract-wide proration. Funds shall be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN. Progress Payments are considered contract level financing, and the "contract price" shall reflect the fixed price portion of the contract per FAR 32.501-3. |

**G-204-HQ001 CONTRACTING POINTS OF CONTACT (NAVWAR) (APR 2025)**

(a) The Contracting Officer's Point of Contact is:

|                                           |
|-------------------------------------------|
| Naval Information Warfare Systems Command |
| Attn: Susana L Wiker, Code: 23000         |
| Bldg: OT-4                                |
| Pacific Highway                           |
| San Diego, CA 92110-3127                  |
| Email: Susana.L.Wiker.civ@us.navy.mil     |
| Phone: (619) 341-2090                     |

(b) The Contracting Specialist's Point of Contact is:

|                                           |
|-------------------------------------------|
| Naval Information Warfare Systems Command |
| Attn: Andrea M Cohn, Code: 23000          |
| Bldg: OT-4                                |
| Pacific Highway                           |
| San Diego, CA 92110-3127                  |
| Email: Andrea.M.Cohn.civ@us.navy.mil      |
| Phone: (619) 208-1247                     |

(c) \*The Contracting Officer's Representative Point of Contact is:

|                                           |
|-------------------------------------------|
| Naval Information Warfare Systems Command |
| Attn: Adrienne M Johnson, Code: PMW 160   |
| Bldg: OT-1                                |
| Pacific Highway                           |

|                                             |
|---------------------------------------------|
| San Diego, CA 92110-3127                    |
| Email: Adrienne.M.Johnson16.civ@us.navy.mil |
| Phone: (858) 537-8505                       |

(d) The NAVWAR Ombudsman is:

|                                           |
|-------------------------------------------|
| Naval Information Warfare Systems Command |
| Attn: LCDR Calvin Chu                     |
| Bldg OT-4, Room 01                        |
| Pacific Highway                           |
| San Diego, CA 92110-3127                  |
| Email: Calvin.T.Chu.mil@us.navy.mil       |
| Phone: (619) 524-7178                     |

\*It is emphasized that only the Contracting Officer has the authority to modify the terms of the contract, therefore, in no event will any understanding agreement, modification, change order, or other matter deviating from the terms of the basic contract between the Contractor and any other person be effective or binding on the Government. When/If, in the opinion of the Contractor, an effort outside the existing scope of the contract is requested, the Contractor shall promptly notify the PCO in writing. No action shall be taken by the Contractor unless the Procuring Contracting Officer (PCO) or the Administrative Contracting Officer (ACO) has issued a contractual change.

(End of text)

#### CLAUSES INCORPORATED BY REFERENCE

252.204-7006 Billing Instructions--Cost Vouchers

MAY 2023

#### CLAUSES INCORPORATED BY FULL TEXT

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

### **COMBO**

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

### **NOT APPLICABLE**

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract. [Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i>              |
|---------------------------|------------------------------------------------|
| Pay Official DoDAAC       | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Issue By DoDAAC           | N00039                                         |
| Admin DoDAAC**            | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Inspect By DoDAAC         | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Ship To Code              | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Ship From Code            | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Mark For Code             | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Service Approver (DoDAAC) | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Service Acceptor (DoDAAC) | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Accept at Other DoDAAC    | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| LPO DoDAAC                | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| DCAA Auditor DoDAAC       | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |
| Other DoDAAC(s)           | TO BE DETERMINED ON INDIVIDUAL DELIVERY ORDERS |

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

**TBD**

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## Section H - Special Contract Requirements

### **H-1 GOVERNMENT FURNISHED INFORMATION (GFI)**

To be applied at the Delivery Order level, as required.

### **H-2 GOVERNMENT FURNISHED MATERIAL (GFM)**

To be applied at the Delivery Order level, as required.

### **H-3 AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER**

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the Changes clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the aid authority remains solely the Contracting Officer's. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The contact information for the Contracting Officer is:

NAME: Susana L. Wiker

ADDRESS: 4301 Pacific Highway, San Diego, CA 92110-3127

TELEPHONE: (619) 341-2090

E-MAIL: [Susana.L.Wiker.civ@us.navy.mil](mailto:Susana.L.Wiker.civ@us.navy.mil)

### **H-209-HQ007 EXISTING ORGANIZATIONAL CONFLICT OF INTEREST (NAVWAR) (APR 2025)**

*Note: All language provided in accordance with FAR 9.507-2(a).*

#### **(a) Definitions.**

- (1) "Contractor" means the firm signing this contract.
- (2) "Supplier" means a firm, or a firm's subsidiaries, its parent corporation or subsidiary of the parent corporation, that is engaged in or having a known prospective interest in the furnishing of ADNS MAC materials in support of which, tasks will be performed under this contract.
- (3) "Affiliates" means employees, directors, partners, participants in joint ventures, parent corporation, parent corporation subsidiaries, any entity into or with which the contractor may subsequently merge or affiliate, any other successor or assignee of the prime contractor and subcontractors.
- (4) "Interest" means direct or indirect business or financial interest.

(b) Warranty Against Existing Conflict of Interest. The contractor warrants that neither it nor its affiliates have any contracts with, or any material or substantial interests in the hardware or software suppliers. For any breach of this warranty, the Government shall have the right to rescind this contract without liability or, at its discretion, terminate this contract for default. In such circumstances, the contractor shall not be entitled to reimbursement of any cost

incurred in performing this contract or payment of any fee thereunder. Further, such shall not be allocable or chargeable, directly or indirectly, to any other contract with the Government.

**H-209-HQ001 CONTRACTOR PICTURE BADGE (NAVWAR) (APR 2025)**

(a) A contractor picture badge may be issued to contractor personnel by the Naval Information Warfare Center, Atlantic (NIWC LANT) or Naval Information Warfare Center, Pacific (NIWC PAC) upon receipt of a valid visit request from the Contractor and a picture badge request from the COR. A list of personnel requiring picture badges must be provided to the COR to verify that the contract or delivery order authorizes performance at NIWC LANT or NIWC PAC prior to completion of the picture badge request.

(b) The contractor assumes full responsibility for the proper use of the identification badge and shall be responsible for the return of the badge upon termination of personnel or expiration or completion of the contract.

(c) At the completion of the contract, the contractor shall forward to NIWC LANT or NIWC PAC, a list of all unreturned badges with a written explanation of any missing badges.

**H-209-HQ002 LIMITED RELEASE OF CONTRACTOR CONFIDENTIAL BUSINESS INFORMATION (NAVWAR) (APR 2025)**

(a) Definition.

“Confidential Business Information,” (Information) as used in this text, is defined as all forms and types of financial, business, economic or other types of information other than technical data or computer software/computer software documentation, whether tangible or intangible, and whether or how stored, compiled, or memorialized physically, electronically, graphically, photographically, or in writing if — (1) the owner thereof has taken reasonable measures to keep such Information secret, and (2) the Information derives independent economic value, actual or potential from not being generally known to, and not being readily ascertainable through proper means by, the public. Information does not include technical data, as that term is defined in DFARS 252.227-7013(a)(14), 252.227-7015(a)(4), and 252.227-7018(a)(19). Similarly, Information does not include computer software/computer software documentation, as those terms are defined in DFARS 252.227-7014(a)(4) and 252.227-7018(a)(4).

(b) The Naval Information Warfare Systems Command (NAVWARSYSCOM) may release to individuals employed by Naval Information Warfare Systems Command (NAVWARSYSCOM) support contractors and their subcontractors Information submitted by the contractor or its subcontractors pursuant to the provisions of this contract. Information that would ordinarily be entitled to confidential treatment may be included in the Information released to these individuals. Accordingly, by submission of a proposal or execution of this contract, the offeror or contractor and its subcontractors consent to a limited release of its Information, but only for purposes as described in paragraph (c) of this text.

(c) Circumstances where NAVWAR may release the contractor’s or subcontractors’ Information include the following:

- (1) To other NAVWAR contractors and subcontractors, and their employees tasked with assisting NAVWAR in handling and processing Information and documents in the administration of NAVWAR contracts, such as file room management and contract closeout, Quality Assurance Reviews, development of performance metrics, archiving pre and post contract documents and;
- (2) To NAVWAR contractors and subcontractors, and their employees tasked with assisting NAVWAR in accounting support services, including access to cost-reimbursement vouchers.

(d) NAVWAR recognizes its obligation to protect the contractor and its subcontractors from competitive harm that could result from the release of such Information. NAVWAR will permit the limited release of Information under paragraphs (c)(1) and (c)(2) only under the following conditions:

- (1) NAVWAR determines that access is required by other NAVWAR contractors and their subcontractors to perform the tasks described in paragraphs (c)(1) and (c)(2);

- (2) Access to Information is restricted to individuals with a bona fide need to possess;
- (3) Contractors and their subcontractors having access to Information have agreed under their contract or a separate corporate non-disclosure agreement to provide the same level of protection to the Information that would be provided by NAVWAR employees. Such contract terms or separate corporate non-disclosure agreement shall require the contractors and subcontractors to train their employees on how to properly handle the Information to which they will have access, and to have their employees sign company non-disclosure agreements certifying that they understand the sensitive nature of the Information and that unauthorized use of the Information could expose their company to significant liability. Copies of such employee non-disclosure agreements shall be provided to the Government;
- (4) NAVWAR contractors and their subcontractors performing the tasks described in paragraphs (c)(1) or (c)(2) have agreed under their contract or a separate non-disclosure agreement to not use the Information for any purpose other than performing the tasks described in paragraphs (c)(1) and (c)(2); and,
- (5) Before releasing the Information to a non-Government person to perform the tasks described in paragraphs (c)(1) and (c)(2), NAVWAR shall provide the contractor a list of the company names to which access is being granted, along with a Point of Contact for those entities.

(e) NAVWAR's responsibilities under the Freedom of Information Act are not affected by this text.

(f) The contractor agrees to include, and require inclusion of, this text in all subcontracts at any tier that requires the furnishing of Information.

## **H-216-HQ001 MULTIPLE AWARD CONTRACT (MAC) – DELIVERY ORDER PROCEDURES (APR 2025)**

The ordering procedures below are provided for informational purposes only. The actual procedures (including response times) may vary according to individual order circumstances.

(a) Multiple Award Contract (MAC) Ordering Procedures. It is anticipated that each competitive fair opportunity order will be placed in accordance with the following procedures:

In accordance with section 1331 of Public Law 111-240 (15 U.S.C. 644(r)) and FAR 16.505(b)(2)(i)(F), the Government preserves the right to consider the set-aside of individual orders for small business concerns on an order-by-order basis. If there are two or more contract awards to any one type of small business concern (e.g., small business, 8(a), HUBZone, SDVOSB, WOSB or EDWOSB), the Contracting Officer may compete any orders solely amongst the specified types of small business concerns if the "rule of two" has been met. If there are several awards to several different types of small businesses (e.g., one to 8(a), one to HUBZone, one to SDVOSB, one to WOSB or EDWOSB), the Contracting Officer may compete any orders solely amongst all of the small business concerns if the "rule of two" (see FAR 19.502-2) has been met. If there is one contract award to any one type of small business concern (e.g., small business, 8(a), HUBZone, SDVOSB, WOSB or EDWOSB), the Contracting Officer may subsequently issue orders directly to that concern. Any determination to use the above authority will be solely at the discretion of the Contracting Officer. Small business MAC awardees must comply with the applicable limitations on subcontracting provisions for any order issued against the MAC using the above authority.

(1) Requirements Documentation. Upon identification of a requirement, the cognizant technical representative will develop a Statement of Work (SOW) and other requirements documents (e.g., Performance Baseline (PBL) and Contract Data Requirements List (CDRL)) consistent with the technical requirements of this contract and the specific effort. Firm Fixed Price orders will be issued under this contract. Each order will include the order type deemed appropriate by the Government.

(2) Delivery Order RFP. The Contract Specialist or Contracting Officer will issue a Delivery Order Request for Proposals (RFP) to all MAC contractors\* which will include, at a minimum, a SOW, PBL, anticipated CDRL data items, and the anticipated selection procedures for the order. Contractors are strongly



encouraged at this stage to ask questions pertaining to the RFP, including topics such as the Government's evaluation strategy, and to provide comments that could potentially help the Government improve the procurement. The time allotted for the submission of questions and/or comments is 10 business days.

\*Since correspondence is conducted via email, all MAC awardees are strongly encouraged to provide more than one email address to the Government to ensure that multiple contractor POCs receive the Government's emails.

The Government desires more than one offeror to submit a proposal for each order. Contractors are strongly encouraged to provide a preliminary decision as to whether they intend to submit a proposal in response to the final RFP. Should a contractor decide not to submit a proposal for the order, the Government may request the contractor to provide documentation to the Government indicating the reason(s) why no proposal is being submitted. Additionally, the contractor is strongly encouraged to indicate if additional time to respond to the final RFP would cause the contractor to submit a proposal, and if so, how much additional time would be required. This initial propose/no-propose decision is strongly encouraged and is due no later than the deadline for questions and/or comments in response to the RFP.

(3) If there were any questions submitted during the RFP phase, at the Government's discretion, pertinent questions and answers (properly sanitized of proprietary information) will be distributed to all eligible MAC contractors along with the final RFP. The time allotted for the submission of proposals is typically 30 calendar days.

(4) Source Selection Procedures. For a given order, the selection procedures will be based on a best value process, however, in accordance with FAR 16.505(b)(1)(ii), FAR 15.3 will not apply. Each RFP will provide instructions to the MAC contractors as to the specific procedures for responding to the RFP and describe what information shall be presented to the Government in order to be considered for award of the order. The Government reserves the right to clarify certain aspects of one or more of the proposals, without contacting all offerors. These clarifications will not be used to materially alter the technical or price elements and/or otherwise revise proposal.

(5) Price Evaluation and Award. The Government will evaluate proposals and make award based on the evaluation criteria set forth in the RFP. Once an offeror's proposal has been selected for award, a DD Form 1155 will be executed by the Contracting Officer and sent to the contractor as notice to begin work. The contractor is cautioned that no work is to be started prior to receipt of a properly signed and executed DD Form 1155, Order for Supplies/Services, or other authorization by the Contracting Officer.

Within a reasonable amount of time (usually within two business days) after order award, the name of the awardee and the total value of the order will be provided to all MAC contractors.

(b) Non-Competitive Ordering Procedures. It is anticipated that each order awarded either through a Contracting Officer-approved exception at FAR 16.505(b)(2)(i)(A) through (G) applies, or when making a Contracting Officer-approved award to a small business as outlined above, will be placed in accordance with the following procedures:

(c) Content. Orders will include the following elements:

- (1) Effective date of order
- (2) Contract and order numbers
- (3) Type of order (i.e. FFP)
- (4) Estimated price
- (5) Scope
- (6) Inspection and Acceptance Terms
- (7) Delivery and/or Period of Performance (PoP) dates
- (8) Place of delivery or performance
- (9) Accounting and appropriation data
- (10) Other information as appropriate (e.g., COR Designation, Government Furnished Property, material, or facilities to be made available for performance of the order; safety requirements; security requirements set forth on DD Form 254; data requirements set forth on DD Form 1423).

(d) Contractor Notification. The contractor is responsible for immediately notifying the Contracting Officer of any difficulties in performing in accordance with the terms of the order.

(e) Competition Advocate. For this contract, the designated order ombudsman is the Navy Competition Advocate General (DASN (P) as per NMCARS 5206.501). The ombudsman is responsible for reviewing complaints from multiple award contractors and ensuring that all of the contractors are afforded a fair opportunity to be considered for orders in excess of \$3,500, consistent with procedures in the contract. However, it is not within the designated ombudsman's authority to prevent the issuance of an order or to disturb an existing order. Contractors are encouraged to settle their complaints through the Competition Advocate chain of command, seeking review by the Competition Advocate at NAVWAR HQ (Code 2.0B) before taking complaints to the Navy Competition Advocate General.

(End of text)

## Section I - Contract Clauses

## CLAUSES INCORPORATED BY REFERENCE

|                 |                                                                                                                                                |          |
|-----------------|------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| 52.202-1        | Definitions                                                                                                                                    | JUN 2020 |
| 52.203-3        | Gratuities                                                                                                                                     | APR 1984 |
| 52.203-5        | Covenant Against Contingent Fees                                                                                                               | MAY 2014 |
| 52.203-6        | Restrictions On Subcontractor Sales To The Government                                                                                          | JUN 2020 |
| 52.203-7        | Anti-Kickback Procedures                                                                                                                       | JUN 2020 |
| 52.203-8        | Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity                                                               | MAY 2014 |
| 52.203-10       | Price Or Fee Adjustment For Illegal Or Improper Activity                                                                                       | MAY 2014 |
| 52.203-12       | Limitation On Payments To Influence Certain Federal Transactions                                                                               | JUN 2020 |
| 52.203-13       | Contractor Code of Business Ethics and Conduct                                                                                                 | NOV 2021 |
| 52.203-14       | Display of Hotline Poster(s)                                                                                                                   | NOV 2021 |
| 52.204-2        | Security Requirements                                                                                                                          | MAR 2021 |
| 52.204-9        | Personal Identity Verification of Contractor Personnel                                                                                         | JAN 2011 |
| 52.204-10       | Reporting Executive Compensation and First-Tier Subcontract Awards                                                                             | JUN 2020 |
| 52.204-13       | System for Award Management Maintenance                                                                                                        | OCT 2018 |
| 52.204-18       | Commercial and Government Entity Code Maintenance                                                                                              | AUG 2020 |
| 52.204-19       | Incorporation by Reference of Representations and Certifications.                                                                              | DEC 2014 |
| 52.204-21       | Basic Safeguarding of Covered Contractor Information Systems                                                                                   | NOV 2021 |
| 52.204-23       | Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities                        | DEC 2023 |
| 52.204-25       | Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment                                         | NOV 2021 |
| 52.204-27       | Prohibition on a ByteDance Covered Application                                                                                                 | JUN 2023 |
| 52.209-6        | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded | JAN 2025 |
| 52.209-9        | Updates of Publicly Available Information Regarding Responsibility Matters                                                                     | OCT 2018 |
| 52.209-10       | Prohibition on Contracting With Inverted Domestic Corporations                                                                                 | NOV 2015 |
| 52.210-1        | Market Research                                                                                                                                | NOV 2021 |
| 52.211-5        | Material Requirements                                                                                                                          | AUG 2000 |
| 52.215-2        | Audit and Records--Negotiation                                                                                                                 | JUN 2020 |
| 52.215-2 Alt I  | Audit and Records--Negotiation (JUN 2020) Alternate I                                                                                          | MAR 2009 |
| 52.215-8        | Order of Precedence--Uniform Contract Format                                                                                                   | OCT 1997 |
| 52.215-10       | Price Reduction for Defective Certified Cost or Pricing Data                                                                                   | AUG 2011 |
| 52.215-11 (Dev) | Price Reduction for Defective Certified Cost or Pricing Data--Modifications (DEVIATION 2022-O0001)                                             | OCT 2021 |
| 52.215-12       | Subcontractor Certified Cost or Pricing Data                                                                                                   | JUN 2020 |
| 52.215-13       | Subcontractor Certified Cost or Pricing Data--Modifications                                                                                    | JUN 2020 |
| 52.215-14       | Integrity of Unit Prices                                                                                                                       | NOV 2021 |
| 52.215-19       | Notification of Ownership Changes                                                                                                              | OCT 1997 |
| 52.217-9        | Option To Extend The Term Of The Contract                                                                                                      | MAR 2000 |
| 52.219-4        | Notice of Price Evaluation Preference for HUBZone Small Business Concerns                                                                      | OCT 2022 |

|                  |                                                                                                                             |          |
|------------------|-----------------------------------------------------------------------------------------------------------------------------|----------|
| 52.219-8         | Utilization of Small Business Concerns                                                                                      | JAN 2025 |
| 52.219-9         | Small Business Subcontracting Plan                                                                                          | JAN 2025 |
| 52.219-9 Alt III | Small Business Subcontracting Plan (JAN 2025) Alternate III                                                                 | JAN 2025 |
| 52.219-16        | Liquidated Damages-Subcontracting Plan                                                                                      | SEP 2021 |
| 52.219-28        | Postaward Small Business Program Rerepresentation                                                                           | JAN 2025 |
| 52.222-1         | Notice To The Government Of Labor Disputes                                                                                  | FEB 1997 |
| 52.222-3         | Convict Labor                                                                                                               | JUN 2003 |
| 52.222-19        | Child Labor -- Cooperation with Authorities and Remedies                                                                    | JAN 2025 |
| 52.222-20        | Contracts for Materials, Supplies, Articles, and Equipment                                                                  | JUN 2020 |
| 52.222-35        | Equal Opportunity for Veterans                                                                                              | JUN 2020 |
| 52.222-36        | Equal Opportunity for Workers with Disabilities                                                                             | JUN 2020 |
| 52.222-37        | Employment Reports on Veterans                                                                                              | JUN 2020 |
| 52.222-40        | Notification of Employee Rights Under the National Labor Relations Act                                                      | DEC 2010 |
| 52.222-50        | Combating Trafficking in Persons                                                                                            | NOV 2021 |
| 52.226-8         | Encouraging Contractor Policies To Ban Text Messaging While Driving                                                         | MAY 2024 |
| 52.229-3         | Federal, State And Local Taxes                                                                                              | FEB 2013 |
| 52.232-9         | Limitation On Withholding Of Payments                                                                                       | APR 1984 |
| 52.232-23        | Assignment Of Claims                                                                                                        | MAY 2014 |
| 52.232-25        | Prompt Payment                                                                                                              | JAN 2017 |
| 52.232-39        | Unenforceability of Unauthorized Obligations                                                                                | JUN 2013 |
| 52.232-40        | Providing Accelerated Payments to Small Business Subcontractors                                                             | MAR 2023 |
| 52.233-1         | Disputes                                                                                                                    | MAY 2014 |
| 52.233-1 Alt I   | Disputes (May 2014) - Alternate I                                                                                           | DEC 1991 |
| 52.233-3         | Protest After Award                                                                                                         | AUG 1996 |
| 52.233-4         | Applicable Law for Breach of Contract Claim                                                                                 | OCT 2004 |
| 52.240-1         | Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities | NOV 2024 |
| 52.242-13        | Bankruptcy                                                                                                                  | JUL 1995 |
| 52.243-1         | Changes--Fixed Price                                                                                                        | AUG 1987 |
| 52.244-6 (Dev)   | Subcontracts for Commercial Products and Commercial Services (DEVIATION 2025-O0003)                                         | MAR 2025 |
| 52.245-1         | Government Property                                                                                                         | SEP 2021 |
| 52.245-9         | Use And Charges                                                                                                             | APR 2012 |
| 52.246-26        | Reporting Nonconforming Items.                                                                                              | AUG 2024 |
| 52.249-2         | Termination For Convenience Of The Government (Fixed-Price)                                                                 | APR 2012 |
| 52.249-8         | Default (Fixed-Price Supply & Service)                                                                                      | APR 1984 |
| 52.251-1         | Government Supply Sources                                                                                                   | APR 2012 |
| 52.253-1         | Computer Generated Forms                                                                                                    | JAN 1991 |
| 252.201-7000     | Contracting Officer's Representative                                                                                        | DEC 1991 |
| 252.203-7000     | Requirements Relating to Compensation of Former DoD Officials                                                               | SEP 2011 |
| 252.203-7001     | Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies                                        | JAN 2023 |
| 252.203-7002     | Requirement to Inform Employees of Whistleblower Rights                                                                     | DEC 2022 |
| 252.203-7003     | Agency Office of the Inspector General                                                                                      | AUG 2019 |
| 252.203-7004     | Display of Hotline Posters                                                                                                  | JAN 2023 |
| 252.204-7000     | Disclosure Of Information                                                                                                   | OCT 2016 |
| 252.204-7003     | Control Of Government Personnel Work Product                                                                                | APR 1992 |
| 252.204-7012     | Safeguarding Covered Defense Information and Cyber Incident Reporting                                                       | MAY 2024 |

|                    |                                                                                                                            |          |
|--------------------|----------------------------------------------------------------------------------------------------------------------------|----------|
| 252.204-7015       | Notice of Authorized Disclosure of Information for Litigation Support                                                      | JAN 2023 |
| 252.204-7018       | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services                                 | JAN 2023 |
| 252.204-7020       | NIST SP 800-171 DoD Assessment Requirements                                                                                | NOV 2023 |
| 252.204-7024       | Notice on the Use of the Supplier Performance Risk System                                                                  | MAR 2023 |
| 252.209-7004       | Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism | MAY 2019 |
| 252.215-7016       | Notification to Offerors--Postaward Debriefings                                                                            | DEC 2022 |
| 252.216-7010       | Postaward Debriefings for Task Orders and Delivery Orders                                                                  | DEC 2022 |
| 252.219-7003       | Small Business Subcontracting Plan (DOD Contracts)                                                                         | DEC 2019 |
| 252.225-7001       | Buy American and Balance of Payments Program                                                                               | FEB 2024 |
| 252.225-7002       | Qualifying Country Sources As Subcontractors                                                                               | MAR 2022 |
| 252.225-7003       | Report of Intended Performance Outside the United States and Canada--Submission with Offer                                 | JAN 2025 |
| 252.225-7036       | Buy American--Free Trade Agreements--Balance of Payments Program--Basic                                                    | FEB 2024 |
| 252.225-7048       | Export-Controlled Items                                                                                                    | JUN 2013 |
| 252.226-7003       | Drug-Free Work Force                                                                                                       | AUG 2024 |
| 252.227-7027       | Deferred Ordering Of Technical Data Or Computer Software                                                                   | APR 1988 |
| 252.232-7004 (Dev) | DoD Progress Payment Rates (DEVIATION 2020-00010)                                                                          | MAR 2020 |
| 252.232-7010       | Levies on Contract Payments                                                                                                | DEC 2006 |
| 252.234-7003       | Notice of Cost and Software Data Reporting System--Basic                                                                   | NOV 2014 |
| 252.234-7004       | Cost and Software Data Reporting System--Basic                                                                             | NOV 2014 |
| 252.239-7001       | Information Assurance Contractor Training and Certification                                                                | JAN 2008 |
| 252.239-7017       | Notice of Supply Chain Risk                                                                                                | DEC 2022 |
| 252.239-7018       | Supply Chain Risk                                                                                                          | DEC 2022 |
| 252.242-7004       | Material Management And Accounting System                                                                                  | JAN 2025 |
| 252.242-7005       | Contractor Business Systems                                                                                                | JAN 2025 |
| 252.242-7006       | Accounting System Administration                                                                                           | JAN 2025 |
| 252.243-7001       | Pricing Of Contract Modifications                                                                                          | DEC 1991 |
| 252.243-7002       | Requests for Equitable Adjustment                                                                                          | DEC 2022 |
| 252.244-7000       | Subcontracts for Commercial Products or Commercial Services                                                                | NOV 2023 |
| 252.244-7001       | Contractor Purchasing System Administration                                                                                | MAY 2014 |
| 252.245-7003       | Contractor Property Management System Administration                                                                       | APR 2012 |
| 252.245-7005       | Management and Reporting of Government Property                                                                            | JAN 2024 |
| 252.246-7007       | Contractor Counterfeit Electronic Part Detection and Avoidance System                                                      | JAN 2023 |
| 252.246-7008       | Sources of Electronic Parts                                                                                                | JAN 2023 |
| 252.247-7023       | Transportation of Supplies by Sea                                                                                          | OCT 2024 |
| 252.249-7002       | Notification of Anticipated Contract Termination or Reduction                                                              | DEC 2022 |
| 252.251-7000       | Ordering From Government Supply Sources                                                                                    | AUG 2012 |

#### CLAUSES INCORPORATED BY FULL TEXT

52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of Contract Award through eight (8) years thereafter.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

#### 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$5000.00 under CLIN 0004 the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor -

(1) Any order for a single item in excess of \$25,000,000.00

(2) Any order for a combination of items in excess of \$150,000,000; or

(3) A series of orders from the same ordering office within thirty (30) days that together call for quantities exceeding the limitation in paragraph (b) (1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within fifteen (15) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

## 52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum". The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum".

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after ten (10) years from date of contract award.

(End of clause)

## 52.227-19 COMMERCIAL COMPUTER SOFTWARE LICENSE (DEC 2007)

(a) Notwithstanding any contrary provisions contained in the Contractor's standard commercial license or lease agreement, the Contractor agrees that the Government will have the rights that are set forth in paragraph (b) of this clause to use, duplicate or disclose any commercial computer software delivered under this contract. The terms and provisions of this contract shall comply with Federal laws and the Federal Acquisition Regulation.

(b)(1) The commercial computer software delivered under this contract may not be used, reproduced, or disclosed by the Government except as provided in paragraph (b)(2) of this clause or as expressly stated otherwise in this contract.

(2) The commercial computer software may be--

(i) Used or copied for use with the computer(s) for which it was acquired, including use at any Government installation to which the computer(s) may be transferred;

(ii) Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;

(iii) Reproduced for safekeeping (archives) or backup purposes;

(iv) Modified, adapted, or combined with other computer software, provided that the modified, adapted, or combined portions of the derivative software incorporating any of the delivered, commercial computer software shall be subject to same restrictions set forth in this contract;

(v) Disclosed to and reproduced for use by support service Contractors or their subcontractors, subject to the same restrictions set forth in this contract; and

(vi) Used or copied for use with a replacement computer.

(3) If the commercial computer software is otherwise available without disclosure restrictions, the Contractor licenses it to the Government without disclosure restrictions.

(c) The Contractor shall affix a notice substantially as follows to any commercial computer software delivered under this contract:

Notice--Notwithstanding any other lease or license agreement that may pertain to, or accompany the delivery of, this computer software, the rights of the Government regarding its use, reproduction and disclosure are as set forth in **\*TO BE PROVIDED AT CONTRACT AWARD.**

(End of clause)

#### 52.232-16 PROGRESS PAYMENTS (NOV 2021)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of \$2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors--

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless--

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

(i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.

(ii) Costs incurred by subcontractors or suppliers.



(iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.

(iv) Payments made or amounts payable to subcontractors or suppliers, except for --

(A) Completed work, including partial deliveries, to which the Contractor has acquired title; and

(B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor

(ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 80 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than \$2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) Liquidation. Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) Reduction or suspension. The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).

(2) Performance of this contract is endangered by the Contractor's --

(i) Failure to make progress or

(ii) Unsatisfactory financial condition.

(3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.

(5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) Title.

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) "Property," as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d) (2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract; e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not--

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) Risk of loss. Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) Control of costs and property. The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) Reports, forms, and access to records. (1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) Special terms regarding default. If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) Reservations of rights.

(1) No payment or vesting of title under this clause shall --

(i) Excuse the Contractor from performance of obligations under this contract or

(ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause

(i) Shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and

(ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) Financing payments to subcontractors. The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to--

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments--

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its Alternate I for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments--

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments--

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in Subpart 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) Limitations on undefinitized contract actions. Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in Subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) Due date. The designated payment office will make progress payments on the 30<sup>th</sup> day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite--delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

#### 52.234-1 INDUSTRIAL RESOURCES DEVELOPED UNDER TITLE III, DEFENSE PRODUCTION ACT (SEPT 2016)

##### (a) Definitions.

Title III industrial resource means materials, services, processes, or manufacturing equipment (including the processes, technologies, and ancillary services for the use of such equipment) established or maintained under the authority of Title III, Defense Production Act (50 U.S.C. App. 2091-2093).

Title III project contractor means a contractor that has received assistance for the development or manufacture of an industrial resource under Title III of Defense Production Act (50 U.S.C. App. 2091-2093).

(b) The Contractor shall refer any request from a Title III project contractor for testing and qualification of a Title III industrial resource to the Contracting Officer.

(c) Upon the direction of the Contracting Officer, the Contractor shall test Title III industrial resources for qualification. The Contractor shall provide the test results to the Defense Production Act Office, Title III Program, located at Wright Patterson Air Force Base, Ohio 45433-7739.

(d) When the Contracting Officer modifies the contract to direct testing pursuant to this clause, the Government will provide the Title III industrial resource to be tested and will make an equitable adjustment in the contract for the costs of testing and qualification of the Title III industrial resource.

(e) The Contractor agrees to insert the substance of this clause, including paragraph (e), in every subcontract issued in performance of this contract.

(End of clause)

#### 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/content/regulations>

(End of clause)

#### 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

#### 252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) Definitions. As used in this clause-

Automatic identification device means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

Concatenated unique item identifier means--

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

Data Matrix means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

Data qualifier means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

DoD recognized unique identification equivalent means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed in MIL-STD-130 and the DoD Guide to Uniquely Identifying Items.

DoD item unique identification means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

Enterprise means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

Enterprise identifier means a code that is uniquely assigned to an enterprise by an issuing agency.

Government's unit acquisition cost means--

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

Issuing agency means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459).

Issuing agency code means a code that designates the registration (or controlling) authority for the enterprise identifier.

Item means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

Lot or batch number means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

Machine-readable means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

Original part number means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

Parent item means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

Serial number within the enterprise identifier means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

Serial number within the part, lot, or batch number means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

Serialization within the enterprise identifier means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

Serialization within the part, lot, or batch number means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

Type designation means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

Unique item identifier means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

Unique item identifier type means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained in MIL-STD-130 and the DoD Guide to Uniquely Identifying Items.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier. (1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

| Contract line, subline, or exhibit |                  |
|------------------------------------|------------------|
| line item No.                      | Item description |
| .....                              |                  |

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

.....



| Contract line, subline, or exhibit<br>line item No. | Item description |
|-----------------------------------------------------|------------------|
| -----                                               | -----            |
| .....                                               | -----            |

**\*\*\* TBD on individual Delivery Orders.**

(If items are identified in the Schedule, insert "See Schedule" in this table.)

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number ----.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ----.

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or

(iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology--International symbology specification--Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that--

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall--

(A) Determine whether to--

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code--

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD unique item identification under paragraph (c)(1)(iii) of this clause, the Contractor shall report as part of, or associated with, the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.\*\*

(4) Issuing agency code (if concatenated unique item identifier is used).\*\*

(5) Enterprise identifier (if concatenated unique item identifier is used).\*\*

(6) Original part number (if there is serialization within the original part number).\*\*

(7) Lot or batch number (if there is serialization within the lot or batch number).\*\*

(8) Current part number (optional and only if not the same as the original part number).\*\*

(9) Current part number effective date (optional and only if current part number is used).\*\*

(10) Serial number (if concatenated unique item identifier is used).\*\*

(11) Description.

\*\* Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <https://dodprocurementtoolbox.com/site-pages/overview-iuid-registry>.

(2) Embedded items shall be reported by one of the following methods--

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <https://dodprocurementtoolbox.com/site-pages/overview-iuid-registry>, or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ----, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

## Section J - List of Documents, Exhibits and Other Attachments

ATTACHMENT / EXHIBIT TABLE

| <b>Attachments</b> |                                                           | <b>Revision</b> | <b>Date</b>     |
|--------------------|-----------------------------------------------------------|-----------------|-----------------|
| Attachment 1       | ADNS MAC Statement of Work                                | N/A             | 11 June 2025    |
| Attachment 2       | ADNS MAC DD254 – Security Classification                  | N/A             | 30 October 2024 |
| Attachment 3       | ADNS MAC Contactor Performance Evaluation Survey          | N/A             | N/A             |
| Attachment 4       | ADNS MAC Relevant Experience Form                         | N/A             | N/A             |
| <b>Exhibits</b>    |                                                           | <b>Revision</b> | <b>Date</b>     |
| Exhibit A          | ADNS MAC DD1423 – Contracts Data Requirement List (CDRLs) | N/A             | 11 June 2025    |

## Section K - Representations, Certifications and Other Statements of Offerors

## CLAUSES INCORPORATED BY REFERENCE

|                |                                                                                                  |          |
|----------------|--------------------------------------------------------------------------------------------------|----------|
| 52.204-8 (Dev) | Annual Representations and Certifications (DEVIATION 2025-O0003/ DEVIATION 2025-O0004)           | MAR 2025 |
| 52.204-24      | Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment | NOV 2021 |
| 52.209-13      | Violation of Arms Control Treaties or Agreements -- Certification                                | NOV 2021 |
| 52.222-38      | Compliance With Veterans' Employment Reporting Requirements                                      | FEB 2016 |
| 52.225-20      | Prohibition on Conducting Restricted Business Operations in Sudan--Certification                 | AUG 2009 |
| 252.203-7005   | Representation Relating to Compensation of Former DoD Officials                                  | SEP 2022 |
| 252.204-7008   | Compliance With Safeguarding Covered Defense Information Controls                                | OCT 2016 |
| 252.225-7003   | Report of Intended Performance Outside the United States and Canada--Submission with Offer       | JAN 2025 |
| 252.227-7017   | Identification and Assertion of Use, Release, or Disclosure Restrictions                         | JAN 2025 |

## CLAUSES INCORPORATED BY FULL TEXT

## 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ( ) has ( ) does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

#### 52.209-12 CERTIFICATION REGARDING TAX MATTERS (OCT 2020)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it--

(1) Has [ ] filed all Federal tax returns required during the three years preceding the certification;

(2) Has not [ ] been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not [ ], more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

## 252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d) and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

\_\_\_\_ Use with Alternate I.

\_\_\_\_ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

\_\_\_\_ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

\_\_\_\_ Use with Alternate I.

\_\_\_\_ Use with Alternate II.

\_\_\_\_ Use with Alternate III.

\_\_\_\_ Use with Alternate IV.

\_\_\_\_ Use with Alternate V.

\_\_\_\_ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

\_\_\_\_ (vii) 252.232-7015, Performance-Based Payments--Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date \_\_\_\_]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

| FAR/DFARS provision No. | Title | Date | Change |
|-------------------------|-------|------|--------|
|                         |       |      |        |

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

#### 252.227-7028 TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT (JUN 1995)

The Offeror shall attach to its offer an identification of all documents or other media incorporating technical data or computer software it intends to deliver under this contract with other than unlimited rights that are identical or substantially similar to documents or other media that the Offeror has produced for, delivered to, or is obligated to deliver to the Government under any contract or subcontract. The attachment shall identify--

(a) The contract number under which the data or software were produced;



(b) The contract number under which, and the name and address of the organization to whom, the data or software were most recently delivered or will be delivered; and

(c) Any limitations on the Government's rights to use or disclose the data or software, including, when applicable, identification of the earliest date the limitations expire.

(End of clause)

**K-227-HQ003 PRE-AWARD IDENTIFICATION AND ASSERTION OF RESTRICTIONS ON TECHNICAL DATA PERTAINING TO A COMMERCIAL ITEM AND COMMERCIAL COMPUTER SOFTWARE (NAVWAR) (APR 2025)**

**Pre-Award:**

a. Definitions. Unless otherwise specified in this provision, the terms used in this provision are defined in the FAR/DFARS, as applicable.

b. Identification and Assertion of Restrictions. The Offeror (including its subcontractors or suppliers or potential subcontractors or suppliers, at any tier) shall identify all commercial technical data and commercial computer software that it proposes will be delivered or otherwise provided (including all Option CLINs, if exercised) with less than Unlimited Rights as follows:

1. The Offeror shall identify and assert any restrictions for all commercial computer software, including Open-Source Software, and commercial technical data (i.e., technical data pertaining to a commercial item) using the format provided in paragraph e below.

If the Offeror is awarded a contract, the assertions identified in this provision, and this provision, shall be listed in an Attachment to that Contract.

c. Copies of Commercial Licenses. The Offeror shall provide copies of all commercial license(s) under which the Offeror proposes to deliver commercial technical data or commercial computer software. If the Offeror intends to deliver commercial technical data under the terms of DFARS 252.227-7015, Technical Data-Commercial Items instead of its own commercial license, the Offeror shall include DFARS 252.227-7015 in the Pre-Award table found at paragraph e below.

d. Use of Open-Source Software Without Delivery. The Government treats Open-Source Software (OSS) as a category of commercial computer software. If the Offeror proposes to deliver OSS while performing under the Contract, the Contractor shall follow the same rules as prescribed in this provision as for commercial computer software.

e. Table Format for Identification and Assertion of Restrictions. Commercial technical data/commercial computer software restrictions shall be identified as follows:

Identification of Commercial Technical Data/Computer Software (including Open-Source Software) Use and Modifications

| <b>COMMERCIAL<br/>TECHNICAL<br/>DATA/COMPUTER<br/>SOFTWARE TITLE,<br/>VERSION # AND<br/>LICENSE*</b> | <b>TECHNICAL<br/>USE/IMPLEMENTING<br/>APPROACH**</b> | <b>IF OSS, WAS OSS<br/>MODIFIED BY<br/>CONTRACTOR?***</b> | <b>NAME OF<br/>CONTRACTOR<br/>DELIVERING<br/>COMMERCIAL<br/>SOFTWARE ****</b> |
|------------------------------------------------------------------------------------------------------|------------------------------------------------------|-----------------------------------------------------------|-------------------------------------------------------------------------------|
| [Insert info]                                                                                        | [Insert info]                                        | [Insert info]                                             | [Insert info]                                                                 |
|                                                                                                      |                                                      |                                                           |                                                                               |

\* For commercial technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the computer software or computer software documentation. The complete title and version number of the computer software should be

listed. If Open-Source Software (OSS), the OSS license and version number should be listed. If a version number is not available, the Contractor should state no version number. If commercial technical data is being delivered under the terms of DFARS 252.227-7015, then DFARS 252.227-7015 should be listed. If the OSS was downloaded from a website, the website address should also be provided. Enter none if all commercial technical data or commercial computer software will be submitted without restrictions.

\*\* The functionality of the Commercial computer software should be described, as well as where it is being used within the larger computer software deliverable (if applicable).

\*\*\* If OSS is being used, the Offeror should state whether it has modified the OSS.

\*\*\*\* Corporation, individual, or other person as appropriate.

(End of text)

## Section L - Instructions, Conditions and Notices to Bidders

## CLAUSES INCORPORATED BY REFERENCE

|              |                                                                           |          |
|--------------|---------------------------------------------------------------------------|----------|
| 52.204-7     | System for Award Management                                               | NOV 2024 |
| 52.204-16    | Commercial and Government Entity Code Reporting                           | AUG 2020 |
| 52.215-1     | Instructions to Offerors--Competitive Acquisition                         | NOV 2021 |
| 52.215-22    | Limitations on Pass-Through Charges--Identification of Subcontract Effort | OCT 2009 |
| 52.216-27    | Single or Multiple Awards                                                 | OCT 1995 |
| 52.232-13    | Notice Of Progress Payments                                               | APR 1984 |
| 52.232-33    | Payment by Electronic Funds Transfer--System for Award Management         | OCT 2018 |
| 52.237-10    | Identification of Uncompensated Overtime                                  | MAR 2015 |
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements                     | NOV 2023 |
| 252.215-7008 | Only One Offer                                                            | DEC 2022 |

## CLAUSES INCORPORATED BY FULL TEXT

## 52.211-2 AVAILABILITY OF DEFENSE SPECIFICATIONS, STANDARDS, AND DATA ITEM DESCRIPTIONS IN THE ACQUISITION STREAMLINING AND STANDARDIZATION INFORMATION SYSTEM (ASSIST) WEBSITE (SEP 2023)

(a) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(b) Defense documents not available from ASSIST may be requested from the Defense Standardization Program Office by--

(1) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(2) Contacting the Defense Standardization Program Office by telephone at 571-767-6888 or email at [assisthelp@dlam.mil](mailto:assisthelp@dlam.mil).

(End of provision)

## 52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

## 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of an Indefinite Delivery Indefinite Quantity (IDIQ) Multiple Award Contract (MAC) with Firm Fixed Price (FFP) CLINs resulting from this solicitation.

(End of provision)

#### 52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Ms. Susana L. Wiker  
OT-4, 23000  
4301 Pacific Highway  
San Diego, CA 92110  
Phone: 619-341-2090

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

#### 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/far/>

<http://www.acquisition.gov/dfars/>

<http://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of provision)

#### 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

**L-204-HQ001 ESTIMATED EFFECTIVE AWARD DATE (NAVWAR) (APR 2025)**

For Bidding/Proposal purposes the estimated effective date of contract award is **09 December 2025**.

(End of text)

**L-204-HQ002 CUI SOLICITATION / RFI LANGUAGE – ALTERNATE II (E-COMMERCE RFIS/RFPS WHICH INCLUDES CUI, BUT DO NOT INCLUDE CTI) (NAVWAR) (APR 2025)**

The solicitation is available via the Internet by accessing the NAVWAR Headquarters Open Solicitations Page at <https://e-commerce.dc3n.navy.mil>, which will require a NAVWAR e-Commerce account to perform. If assistance accessing the solicitation is required, please contact Ms. Andrea M Cohn, Contract Specialist, by email at [Andrea.M.Cohn.civ@us.navy.mil](mailto:Andrea.M.Cohn.civ@us.navy.mil).

The specific requirements for this Solicitation include Controlled Unclassified Information (CUI) and will not be made publicly available. **To minimize the volume of individual submissions within the NAVWAR e-Commerce platform, the Offeror shall designate a single Point of Contact from the prime offeror to collect and submit the required NDAs to the Government on behalf of the Offeror's team (including team members and subcontractors). As such, the Prime Offeror's single Point of Contact must register for a NAVWAR e-Commerce account at <https://e-commerce.dc3n.navy.mil/>.**

In order to obtain access to the **Controlled Unclassified Information (CUI) ADNS MAC Technical Documents** for the purposes of responding to this Solicitation, interested companies shall:

1. Provide a current copy of the approved DD Form 2345, Military Critical Technical Data Agreement, verifying eligibility and authority to receive export-controlled information; and
2. Complete a Non-Disclosure Agreement (NDA) (available on the ADNS MAC Solicitation Page on NAVWAR e-Commerce at <https://e-commerce.dc3n.navy.mil>)

The DD Form 2345 and completed NDA shall be submitted through the NAVWAR e-Commerce site to the Contract Specialist, Andrea M Cohn ([Andrea.M.Cohn.civ@us.navy.mil](mailto:Andrea.M.Cohn.civ@us.navy.mil)), and to the Contracting Officer, Susana L Wiker ([Susana.L.Wiker.civ@us.navy.mil](mailto:Susana.L.Wiker.civ@us.navy.mil)). The ADNS MAC technical data will be sent by the Contract Specialist to interested companies via Department of Defense Secure Access File Exchange (DoD SAFE) once the DD2345 and NDA are completed.

In order to receive the CUI documents, the Offeror shall provide the information specified above to the Government by the time & date for receipt of proposals as published via the NAVWAR Headquarters Open Solicitations Page. Failure to do so will not result in an extension of the proposal receipt date. It is the responsibility of the Offeror to provide the correct information and to be prepared to receive the CUI documents when they are sent. The Offeror should immediately verify access and download requested documents (within seven (7) calendar days of Drop-off. After that, files are automatically deleted from DoD SAFE). Failure to pick up documents from DoD SAFE will not automatically result in the Government resending the documents, and will not result in an extension of the proposal receipt date. The Government will not resend any documents unless specifically requested to do so.

**IMPORTANT:** For purposes of this solicitation, all documents will be unclassified. However, prime contractors interested in bidding under this solicitation must be able to receive classified documents up to the SECRET level and must be a United States (U.S.) company or an independent U.S. subsidiary. The Navy will *not* consider foreign contractors acting as subcontractors to U.S. prime contractors. The export of defense articles, defense services, and related technical data is subject to the Arms Export Control Act and the International Traffic in Arms Regulations (ITAR) and requires the issuance of an export license by the U.S. Department of State.

If an Offeror does not receive an award under this Solicitation, the Offeror is required to destroy all copies of the CUI documents and provide notification of the destruction to [Susana.L.Wiker.civ@us.navy.mil](mailto:Susana.L.Wiker.civ@us.navy.mil) and [Andrea.M.Cohn.civ@us.navy.mil](mailto:Andrea.M.Cohn.civ@us.navy.mil) no later than 30 calendar days after notification as an unsuccessful offeror.

## **L-204-HQ003 SUBMISSION OF ELECTRONIC PROPOSALS (NAVWAR) (APR 2025)**

(a) Offerors shall submit proposals electronically to NAVWAR no later than **1400 San Diego local time on 29 July 2025** according to the instructions contained in this provision. Included with Volume II of the proposals shall be a scanned version of the signed SF 33. Offerors shall submit their signed proposals as Portable Document Format or (“PDF”) documents. Offerors shall submit one “PDF” file per Volume (e.g., Volume I and Volume II). Therefore, each offeror’s total submission shall include one compressed ZIP file to the maximum extent practical.

Electronic copies shall be submitted via the NAVWAR E-Commerce Central (NAVWAR E-CC). Offerors shall register in the NAVWAR E-CC and select their own password in order to submit a proposal. Offerors are required to read the “Submitting a Proposal?” web page found in the NAVWAR E-CC. For information about electronic submission, please visit the NAVWAR E-CC at <https://e-commerce.dc3n.navy.mil/>.

(b) Each electronic file shall also be clearly marked to show the L-204-HQ0003 Volume E-File Type Suffix, solicitation number and Offeror’s name. E-Proposal files shall **not** contain classified data. The Offeror’s e-proposal shall be in accordance with the requirements set forth below:

- (1) Adobe Acrobat version 4.01 or greater shall be used to create the “PDF” files.
- (2) The proposal submission files may be compressed (zipped) into one ZIP file entitled “PROPOSAL.ZIP” using WinZip version 6.3 or greater.

(c) Bids and proposals submitted electronically will be considered “late” unless the bidder or Offeror completes the entire transmission of the bid or proposal prior to the due date and time for receipt of bids or proposals. This paragraph (c) supplements the submission, modification and withdrawal of bids and proposals coverage in the FAR 52.212-1 “Instructions to Offerors--Commercial Items”, FAR 52.214-7 “Late Submissions, Modifications, and Withdrawals of Bids”, FAR 52.214-23 “Late Submissions, Modifications, Revisions, and Withdrawals of Technical Proposals under Two-Step Sealed Bidding”, or the FAR 52.215-1 “Instructions to Offerors--Competitive Acquisition” provision contained in the solicitation.

(End of text)

## **1.0 GENERAL PROPOSAL INFORMATION**

This solicitation is for the Automated Digital Network System (ADNS) Multiple Award Contract (MAC) procurement, herein referred to as ADNS MAC.

### **1.1 SOLICITATION OVERVIEW**

This solicitation is for the delivery of Build-to-Print (BTP) ADNS production units, Cyber Threat Upgrades (CTUs) and Mission Focused Upgrades (MFUs), kits, modules, components, software, spares, and lab material for Shore, Surface, Submarine and Airborne platforms. This contract also encompasses the functions to support production activities to include, but not limited to, program management functions. Specific requirements will be defined in individual Delivery Orders.

### **1.2 OFFEROR QUESTIONS REGARDING SOLICITATION**

Offerors may submit questions and request clarifications related to any aspect of this solicitation. Questions shall only be provided in writing via email to the following email addresses [Andrea.M.Cohn.civ@us.navy.mil](mailto:Andrea.M.Cohn.civ@us.navy.mil) and [Susana.L.Wiker.civ@us.navy.mil](mailto:Susana.L.Wiker.civ@us.navy.mil). The Government may make available to the general public any Offeror questions and requests for clarifications and any Government responses to such questions and requests for clarifications;

therefore, Offerors are instructed not to submit comments of a proprietary nature. **The Government may not respond to questions and requests for clarifications submitted later than fifteen (15) calendar days before the closing date of this Solicitation.**

### 1.3 VALIDITY OF PROPOSALS

Proposals submitted in response to this Solicitation shall be valid for at least **300 calendar days** from the date the proposal is due.

## 2.0 PROPOSAL REQUIREMENTS

### 2.1 PROPOSAL ORGANIZATION, FORMAT AND CONTENT

2.1.1 PROPOSAL ORGANIZATION. The Offeror's proposal shall consist of two (2) separate Volumes as follows:

- a. Volume I: Technical Proposal
- b. Volume II: Contract Documents

Proposals shall be submitted in accordance with solicitation Section L-204-HQ003 Submission of Electronic Proposals".

2.1.2 PROPOSAL FORMAT. In addition to all other requirements of this solicitation, each Offeror shall demonstrate its capability by means of a detailed written proposal in each of the areas indicated under Section M – Evaluation Factors for Award. **Proposals submitted for consideration for award must address the full scope of the solicitation. Data previously submitted, if any, will not be used in the evaluation of your response to this solicitation. Previously submitted data shall not, therefore, be included in your proposal "by reference."** **Proposals which address only part of the solicitation may be considered unacceptable and ineligible for award.**

The Offeror's proposal Volumes shall include the following:

| VOLUME                                                          | PAGE LIMITATIONS                                                                                                                                                                                                        | VOLUME E-FILE TYPE SUFFIX |
|-----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|
| <b>I: TECHNICAL PROPOSAL</b>                                    |                                                                                                                                                                                                                         |                           |
| Section 1: ADNS Production Processes and Capacity (Factor 1)    | Twenty (20) pages maximum                                                                                                                                                                                               | V1.TECH                   |
| Section 2: Management Approach (Factor 2)                       | Fifteen (15) pages maximum                                                                                                                                                                                              | V1.MGMT                   |
| Section 3: ADNS Sample Delivery Order (Factor 3)                | Twenty (20) pages maximum                                                                                                                                                                                               | V1.PROD_DO                |
| Section 4: Past Performance (Factor 4)                          | Nine (9) pages maximum.<br>Offerors shall cite at least one reference from the prime Offeror, no more than one reference from any subcontractor, and no more than three references total.                               | V1.PAST_PERF              |
| Section 5: Extent of Participation of Small Business (Factor 5) | Five (5) pages maximum<br>(Exclusive of SF294s / SF295s / Individual Subcontracts Report (ISRs) / Summary Subcontracting Reports (SSRs) / DCMA Compliance Letter & evidence of commitment to utilize small businesses). | V1.SBP                    |
| <b>II: CONTRACT DOCUMENTS</b>                                   |                                                                                                                                                                                                                         |                           |
| Section 1: Cover Letter                                         | No page limit                                                                                                                                                                                                           | V2.LTR                    |

|                                                           |               |             |
|-----------------------------------------------------------|---------------|-------------|
| Section 2: Exceptions to the RFP                          | No page limit | V2.EXC      |
| Section 3: Signed SF33                                    | No page limit | V2.SF33     |
| Section 4: RFP Sections B through J                       | No page limit | V2.RFPB-J   |
| Section 5: RFP Section K                                  | No page limit | V2.RFP-K    |
| Section 6: Contractor Responsibility                      | No page limit | V2.CONTRESP |
| Section 7: Subcontracting Plan                            | No page limit | V2.SUBPLAN  |
| Section 8: Foreign Owned Subcontractors                   | No page limit | V2.FOREIGN  |
| Section 9: Proprietary Data Protection Agreements (PDPAs) | No page limit | V2.PDPA     |

*Note: Failure to submit complete information in the manner above may be considered a “no response” and may result in the exclusion of the proposal from further consideration.*

### **Proposal Content**

Information submitted in excess of the page limits established above will not be read or evaluated. Page limits do not include cover sheets, tables of contents, and lists of figures, lists of drawings, lists of proprietary data, glossaries, tabs, dividers, or blank pages.

Do not include cost information in Volume I Technical Proposal.

Electronic copies of the proposal must be provided in separate Technical and Contract Documents files. Each proposal section shall be labeled with the Volume/Section Suffix provided in the table in Paragraph 2.1.2 above. Electronic proposals shall be submitted in accordance with provision L-204-HQ003, Submission of Electronic Proposals.

1. **Format**: A page is defined as a sheet of paper that includes information. The electronic proposal shall be prepared for printing on 8 1/2" x 11" paper format with single-spaced typed lines, including figures, glossaries, tables of contents and cover sheets. A partial page counts as a full page. Type size shall be Times New Roman 12 point in the text, 10 point in spreadsheets and tables, and 8 point in drawings and figures. Standard margins shall be a minimum of one inch, excluding header and footer. The volumes shall contain a glossary of abbreviations and acronyms used and an explanation of each. No pen and ink changes are allowed.

2. **Numbering**: Pages shall be numbered consecutively within each section to indicate the volume, section, and page. For example, page 19 of Volume I, Section B would be numbered I-B-19.

Responses to the requirements in each of the factors listed in Sections L and M are necessary to enable the Government to evaluate the Offeror's understanding of, and capability to accomplish, the stated requirements. The Offeror must provide sufficient detail to substantiate the validity of all stated claims. Proposals shall be submitted in accordance with the instructions contained herein. Non-conformance may cause rejection of, or the down scoring of, the proposal. An Offeror's proposal is presumed to represent its best efforts to respond to the solicitation. Proposals should be clear, concise and complete. Organization, clarity, accuracy of information, relevance, and completeness are of prime importance. Sufficient supporting information shall be provided to allow the Government to evaluate the Offeror's approach.

## **3.0 PROPOSAL VOLUMES**

### **3.1 VOLUME 1 - TECHNICAL PROPOSAL**

**General Guidelines for Content**. The required content of each technical proposal section is described below. The technical proposal shall not include any cost information. The technical proposal shall cover the Offeror's



understanding of the work and the methods that will be employed to attain contract objectives and shall enable technical personnel to make a thorough evaluation and a determination whether the proposal will satisfy the Government's requirements.

The technical proposal shall be specific, detailed, and complete and fully demonstrate that the prospective Offeror has a thorough understanding of the Government's requirements. Data previously submitted to the Government will not be considered; therefore, such data shall not be incorporated into the technical proposal by reference. Statements that the Offeror understands, can or will comply with all specifications, or statements paraphrasing the specifications or other information contained in the Solicitation will be considered inadequate. Phrases such as "Standard procedures will be employed" and "well known techniques will be used" will also be considered insufficient. Offerors shall provide separate responses to each technical evaluation factor within the identified page limitations. Offerors shall not exceed the page limitation by cross referencing other sections of their proposals. Offers, which do not present sufficient information to permit complete technical evaluation by the Government, may be rejected.

**Offerors shall prepare Volume I in five (5) separate sections as follows:**

- Section 1: ADNS Production Processes and Capacity (Factor 1)**
- Section 2: Management Approach (Factor 2)**
- Section 3: ADNS Sample Delivery Order (Factor 3)**
- Section 4: Past Performance (Factor 4)**
- Section 5: Small Business Participation (Factor 5)**

**3.1.1 FACTOR 1 – ADNS PRODUCTION PROCESSES AND CAPACITY (TWENTY (20) PAGES MAXIMUM)**

Offerors shall describe the end-to-end process for producing ADNS systems, from receipt of delivery order to shipment of integrated system product to specified government sites, and available capacity for producing and storing ADNS systems and components. For the purposes of addressing this Factor, Offerors are to consider the ADNS Technical Data Packages (TDPs) and Attachment 1 - ADNS MAC SOW to specifically address the following and should expand to any other production processes that would be relevant:

- a) Offerors shall describe their process and procedures for addressing any post award Government changes to the Product Baseline (PBL), to include configuration management, ensuring the production units are in compliance with the latest revision of the approved PBL. Offerors shall specifically address Quality Assurance, Supply Chain Risk Management, End-of-Life/End-of-Sale/End-of-Support identification/notification and proposed resolution in coordination with the Government, Trade Agreement Act (TAA) compliance, and how the production units are validated against the latest revision of the approved PBL and what steps the Offeror will take to mitigate change-driven impacts to Price, Schedule and Performance (e.g. quality, delivery) for accomplishing the ADNS MAC effort.
- b) Offerors shall describe their procurement and inventory management process and procedures for ADNS hardware, to include CaaS systems, Cyber Threat Upgrades, Mission Focused Upgrades, Ancillary kits, lab equipment and spares. If using an existing ordering and inventory process, Offerors shall describe how they will tailor the processes for accomplishing the procurement and inventory management process and procedures, specifically addressing receipt of equipment, storage management, change management, tools used and how they will benefit the ADNS program.
- c) Offerors shall describe their process and procedures for procuring ADNS software, identifying any differences in processes for first time software procurements vice maintenance and renewals. If using an existing process, Offerors shall describe how they will tailor an existing process, specifically addressing ordering processes, change management, tools used and how they will benefit the ADNS program.
- d) Offerors shall describe their maximum capacity in terms of the number of ADNS hardware, components, kits, spares and lab material that can be simultaneously produced and stored at any one time, and capacity to store under the ADNS MAC. Maximum capacity shall be defined to include concurrent production of racks under multiple DO's or a single DO containing multiple platforms, not linear or sequential

production, taking into consideration other efforts being performed in the same facility. The number of racks per platform shall be in accordance with the Government provided TDP.

For the purposes of describing maximum capacity, Offerors shall consider the following information: The ADNS architecture for a Force-level platform will have between four (4) to twelve (12) servers, two (2) to three (3) switches, one (1) Secure Communications Interoperability Protocol-Interworking Function (SCIP-IWF), and various "hotel services" equipment such as two (2) Uninterrupted Power Supplies (UPS), Power Distribution Unit (PDU), Human Machine Interface (HMI) and various media converters. The ADNS architecture for a Unit-level platform will have between six (6) to seven (7) servers, two (2) switches, one (1) SCIP-IWF and various "hotel services" equipment such as two (2) UPS, PDU, an HMI and various media converters. The ADNS architecture on a Submarine platforms will have seven (7) servers, six (6) network switches and one (1) SCIP-IWF with no requirement for a specific submarine equipment rack.

### **3.1.2 FACTOR 2 –MANAGEMENT APPROACH (FIFTEEN (15) PAGES MAXIMUM)**

Offerors shall describe their proposed management approach and the ability of that approach to support building ADNS systems, and providing software, components and spares in accordance with the requirements of Attachment 1 - ADNS MAC SOW by addressing the following:

- a) Offerors shall describe their processes for ensuring workforce availability to meet varying production demands. Offerors shall specifically address their ability to maintain a competent workforce during periods of minimum production (no awarded delivery orders) and to rapidly adjust their workforce to meet increased production demands of simultaneous production under multiple delivery orders. Simultaneous production shall be defined as concurrent production with coinciding delivery windows, not to linear or sequential productions.
- b) Offerors shall describe their proposed management approach to production and delivery of ADNS systems. The approach should include the Offeror's program management, decision-making, cost savings, and risk and issue management strategy, to account for any technology, engineering, or design changes that may be required during delivery of ADNS systems.
- c) Offerors shall describe their proposed management approach to the procurement and delivery of software (to include maintenance and renewals), components and spares under the ADNS MAC. The approach should include the Offeror's program management, use of DoD/DoN Enterprise License Agreements, ordering practices with third party Original Equipment Manufacturers and software distributors, decision-making, cost savings, and risk and issue management strategy, to account for any technology, engineering, or design changes that may be required during delivery of software, components and spares.

### **3.1.3 FACTOR 3 – ADNS SAMPLE DELIVERY ORDER (TWENTY (20) PAGES MAXIMUM)**

Offerors shall provide a technical proposal for the production of ADNS systems in accordance with the following sample delivery order scenario. After award of the base multiple award contract, the Government issues and awards a single delivery order for the production of four (4) total systems. The systems include one ADNS CVN system, two ADNS DDG systems, and one ADNS Virginia Class Submarine system.

The delivery schedule is as follows:

1. The Virginia Class Submarine system is due 300 days after award
2. The CVN system is due 420 days after award
3. The first DDG system is due 434 days after award
4. The second DDG system is due 448 days after award

The Submarine system shall be delivered to Naval Information Warfare Center Atlantic and Surface systems shall be delivered to Naval Information Warfare Center Pacific. Delivery addresses are noted below. The Offeror's proposal shall specifically address the following for all systems being ordered in this sample delivery order:

- a) Offerors shall describe their management approach to production and delivery of the ADNS sample Delivery Order. The approach should include the Offeror's program management, Government engagement, decision-making, cost savings, and risk management strategy, to account for any technology, engineering, or design changes that may be required during delivery of ADNS systems under the ADNS MAC.
- b) Offerors shall describe their processes, procedures, and timing for ordering material. Offerors shall specifically address interactions with suppliers, ordering Long Lead Time Material, storage and inventory management, and what steps will be taken to mitigate change-driven impacts to Price, Schedule and Performance (e.g. quality, delivery) for accomplishing the effort under the ADNS MAC. For a typical Period of Performance of six months or more, any Commercial off the Shelf (COTS) with a lead-time over 90 days is considered a long lead item. Items requiring 60-90 days, such as some fabricated metal products, become critical path items since the items are needed earlier in the production process.
- c) Offerors shall describe their processes and procedures for addressing any post award Government changes to the PBL, to include configuration management, ensuring the production units comply with the latest revision of the approved PBL. Offerors shall specifically address Quality Assurance, Supply Chain Risk Management, and how the production units are validated against the latest revision of the approved PBL and what steps will be taken to mitigate change-driven impacts to Price, Schedule and Performance (e.g. quality, delivery) for accomplishing the effort.
- d) Offerors shall provide an Integrated Master Schedule (IMS) for managing this sample delivery order. At a minimum, the IMS shall identify the major program milestones, tasks, interrelationships and dependencies, critical path, integrating kits, routing of cables, obtaining and processing vendors' quotes, quality control checks, system workflow through production line, and test events. The IMS shall also address personnel resource loading to include personnel, tools, space, and power. The IMS shall be limited to 2500 lines and is not included in the maximum page limitations for Factor 3.
- e) Offerors shall describe their production plan for the sample production delivery order, to include but not limited to:
  - 1. Identification and mitigation of manufacturing risks and issues (including supplier risks and issues).
  - 2. The major assembly sequence chart and anticipated manufacturing process flow.
  - 3. The manufacturing build schedule, including internal drawing release, production planning development and completion; tooling design, build and proofing; supplier deliveries; and fabrication, assembly and delivery schedules.
  - 4. Facility capacity, to include facility infrastructure and layouts; tooling equipment including type, quantities, tool storage and tool maintenance; and the test equipment including, equipment used to test electrical components, COTS systems, cabling and mechanical components.
  - 5. Facility capabilities and plan to meet power requirements to support production.
- f) Offerors shall provide their approach for testing each system to include Factory Acceptance Test (FAT) using DI-NDTI-80809B. Offerors shall address their ability to maintain quality during production so that each system complies with the TDP to minimize rework required due to discrepancies identified during Government Acceptance Testing.

Delivery Addresses:

N66001 - COMMANDING OFFICER  
Naval Information Warfare Center (NIWC) Pacific  
4297 Pacific Highway  
San Diego, CA 92110

N65580 - COMMANDING OFFICER  
Naval Information Warfare Center (NIWC) Atlantic  
1008 Trident Street

Hanahan, SC 29410

The delivery order scenario is a sample only; actual delivery orders issued post-award may differ in quantity and schedule. Offerors shall not begin any production efforts in response to this Solicitation.

### **3.1.4 FACTOR 4 – PAST PERFORMANCE (NINE (9) PAGES MAXIMUM)**

Offerors shall submit up to three (3) Attachment 4 - Relevant Experience Forms to explain the relevance and quality of the Offeror's past performance since 01 January 2020. Offerors shall cite at least one reference from the prime Offeror, no more than one reference from any subcontractor, and no more than three references total. Cite references in the following order: prime, subcontractor, and then consultant.

Block 12 of the Relevant Experience Form requires Offerors to provide a summary description of contract work, not to exceed two additional single-sided pages in length, for each cited reference. In completing these summary descriptions, Offerors must explain the relevance of each cited reference with respect to Attachment 1 - ADNS MAC SOW.

The Government will evaluate recent past performance data from 01 January 2020 provided by Offerors and obtained from other sources in the following areas:

- a) Quality - Conformance to contract requirements, specifications and standards of good workmanship, accuracy of reports, technical excellence, reliability.
- b) Schedule - Timeliness of performance regarding contract milestones, delivery/performance schedules, administrative requirements, actions that contribute to or affect schedule variance, contractor corrective actions.
- c) Cost Control - Effectiveness in forecasting, managing and controlling contract cost; demonstrated sense of cost responsibility, efficient use of resources, cost savings; current, accurate and complete billings; actual cost/rates reflect closely to negotiated cost/rates.
- d) Management - Integration and coordination of all activity needed to execute the contract, specifically the timeliness, completeness and quality of problem identification, corrective action, risk management, history of reasonable and cooperative behavior, customer satisfaction; responsiveness; subcontract management (when applicable); program management; management of key personnel (when applicable).
- e) Utilization of Small Business - Effective program to maximize the participation of small business concerns in Federal agency contracts. Compliance with FAR 52.219-8 "Utilization of Small Business Concerns." Compliance with FAR 52.219-9 "Small Business Subcontracting Plan."
- f) Regulatory Compliance - Compliance with all terms and conditions in the contract relating to applicable regulations and codes, to include – when applicable – compliance with financial, environmental, safety and labor regulations as well as any reporting requirements.

For the purposes of this factor relevant past performance is defined as experience that demonstrates both the following:

- a) Production of rack-mounted, U.S. Navy Shipboard, Submarine, Airborne and Shore systems; and
- b) Similar scope, magnitude of effort, and complexity compared to the ADNS MAC Solicitation, ADNS Technical Data Package.
  - 1. If available, Offerors shall submit the most recent Contractor Past Performance Assessment Reporting System (CPARS) evaluations for each of the experiences identified above. If CPARS evaluations are unavailable, Offerors shall contact their past performance references and request that references

complete Attachment 3 - Contractor Performance Evaluation Survey and email the completed questionnaires, before the due date of this solicitation, to Andrea Cohn at [Andrea.M.Cohn.civ@us.navy.mil](mailto:Andrea.M.Cohn.civ@us.navy.mil). The Government may consider questionnaires received after the due date of the solicitation. The Government reserves the right to contact references for verification or additional information.

The Government reserves the right to use past performance information obtained from sources other than those identified by the Offeror. This past performance information will be used for the evaluation of past performance.

The Government does not assume the duty to search for data to cure the problems it finds in the information provided by the Offeror. The burden of providing thorough and complete past performance information remains with the Offeror.

Offerors shall facilitate the submission of Attachment 3 - Contractor Performance Evaluation Survey for each reference or submit a statement that past performance information for an individual contract resides in the (CPARS).

### 3.1.5 FACTOR 5 – EXTENT OF PARTICIPATION OF SMALL BUSINESS

Large Business Offerors shall describe their proposed approach to meeting small business subcontracting goals and utilizing its subcontractors.

Large Business Offerors shall discuss their proposed approach to ensuring that at least 28% of the total subcontracted amount of their proposal represents awards to Small Business concerns consistent with the following desired NAVWAR Subcontracting Goals.

| Small Business Categories                                   | NAWWAR Subcontracting Goals (Based on % of total subcontracted amount) |
|-------------------------------------------------------------|------------------------------------------------------------------------|
| <b>Total Small Business (includes the below categories)</b> | 28%                                                                    |
| Small Disadvantaged Business (SDB)                          | 5%                                                                     |
| Woman-Owned Small Business (WOSB)                           | 5%                                                                     |
| HUBZone                                                     | 3%                                                                     |
| Service-Disabled Veteran Owned Small Business (SDVOSB)      | 3%                                                                     |

Large Business Offerors shall demonstrate their record of historical achievement of small business subcontracting goals and timely payment of subcontractors as follows:

- Describe the extent to which their company has previously met small business subcontracting goals on other contracts/orders and the extent to which the Offeror timely paid its small business subcontractors.
- Where available, the two (2) most recently filed Individual Subcontractor Reports (ISRs), for each prime contract cited, shall be submitted. If ISRs are unavailable, Offerors may submit other documentation to establish their record of small business goal achievement. If, historically, the Offeror has not met/exceeded small business goals, the Offeror shall provide a detailed explanation addressing what actions were taken on previous efforts and what efforts will be taken to meet the subcontracting goals for this effort.

## 3.2 VOLUME II - CONTRACT DOCUMENTS

This volume is the Offeror's contractual commitment, complete in every respect and ready for acceptance by the Government. The Offeror's proposal shall be signed by a company official having actual authority to bind the contractor contractually.

Offerors shall prepare Volume II in nine (9) separate sections as follows:

|                   |                              |
|-------------------|------------------------------|
| <b>Section 1:</b> | <b>Cover Letter</b>          |
| <b>Section 2:</b> | <b>Exceptions to the RFP</b> |
| <b>Section 3:</b> | <b>Signed SF33</b>           |

|                   |                                                                                                         |
|-------------------|---------------------------------------------------------------------------------------------------------|
| <b>Section 4:</b> | <b>RFP Sections B through J</b>                                                                         |
| <b>Section 5:</b> | <b>RFP Section K</b>                                                                                    |
| <b>Section 6:</b> | <b>Contractor Responsibility</b>                                                                        |
| <b>Section 7:</b> | <b>Small Business Subcontracting Plan</b>                                                               |
| <b>Section 8:</b> | <b>Foreign Owned Subcontractors</b>                                                                     |
| <b>Section 9:</b> | <b>Notification of the Use of Contractor Support and Proprietary Data Protection Agreements (PDPAs)</b> |

### 3.2.1 SECTION 1 – COVER LETTER

The section shall include a cover letter on company letterhead. An executive of the company who possesses actual authority to contractually bind the Offeror shall sign the cover letter/signature page.

The cover letter shall contain the following:

- a) The cover letter shall acknowledge receipt of all amendments (if any are issued) to the Solicitation.
- b) The submittal letter shall identify all enclosures being transmitted as part of the response to the Solicitation.
- c) The letter shall reference the Solicitation number and acknowledge that it transmits an offer in response to the Solicitation. It shall state: (1) Commercial and Government Entity (CAGE) Code, (2) Unique Entity ID (generated by SAM.gov), (3) Taxpayer Identification Number (TIN), (4) address(es) of the location(s) at which the Offeror intends to perform the proposed effort, (5) state the name, address and telephone number of the cognizant DCAA audit office, (6) the name, address and telephone number of the cognizant Defense Contract Management Agency (DCMA) office, and (7) a statement that the proposal is valid for no less than **300 calendar days** after the date established for receipt of offers and (8) whether permission is granted allowing contractor support access to the Offeror's proposal (see Section 3.2.7). Prime Offerors shall ensure that all first-tier subcontractors include the information (items 1-7 herein) in their submission to the Government.
- d) The cover letter shall contain a statement of unconditional assent to all terms, conditions, and provisions included in the Solicitation. The offer must communicate the unconditional assent to the terms and conditions in this Solicitation, including any attachments and documents incorporated by reference.

The completion and submission of the above items will constitute the offer. The offer must communicate the unconditional assent to the terms and conditions in this Solicitation, including any attachments and documents incorporated by reference. Acceptance of the offer will create a binding contract between the parties. The failure or refusal to assent to any of the terms and conditions of this Solicitation or the imposition of additional conditions or any material omission by the Offeror may constitute a deficiency which will render the offer unacceptable.

### 3.2.2 SECTION 2: EXCEPTIONS TO THE RFP

If the Offeror takes any exceptions to the Solicitation, those exceptions shall be provided in the cover letter of the Contract Volume (Section 1). The Offeror shall provide a full explanation for all exceptions taken to the Solicitation. Each exception shall be referenced to the applicable paragraph or contract line item number. Any material exceptions to the Solicitation may render the proposal unacceptable and ineligible for award on initial proposals. The Government intends to award the ADNS MAC without discussions as permitted by FAR 15.306(a) and 52.215-1. Therefore, Offerors are advised against submitting an offer that takes exception to any term or condition of this Solicitation or imposes any additional condition or omits any required information, without first consulting the Contracting Officer. The Government reserves the right to conduct discussions and to permit Offerors to revise their proposals if it is in the Government's interests to do so.

### 3.2.3 SECTIONS 3, 4 AND 5 - COMPLETED STANDARD FORM 33 (SF33) and COMPLETED SECTIONS B THROUGH K

- a) Standard Form 33, "Solicitation, Offer, and Award," with blocks 14 through 18 completed by the Offeror including acknowledgement of all Standard Form 30, "Amendment of Solicitation/Modification of Contract" issued.
- b) Completed RFP Sections C through Sections J, as applicable.

- c) Completed RFP Section K, “Representations, Certifications, and Other Statement of Offerors,” completed by the Offeror. Completion of annual representations and certifications via SAM is a requirement of Solicitation provision 52.204-8 but is not a sufficient response to Section K of the Solicitation. All representations and certifications included in Section K must be completed, including DFARS provision 252.227-7017, which requires completion and signature even for a negative response. If any subcontractors are asserting data rights, those assertions should be included with the data assertions submitted by the prime contractor.
- d) Organizational Conflict of Interest Mitigation Plan(s), if applicable. The Offeror shall submit draft versions of any required OCI Mitigation Plans, consistent with the guidance contained in FAR Subpart 9.5.

### **3.2.4 SECTION 6 – CONTRACTOR RESPONSIBILITY**

To aid in the determination of contractor responsibility, the following information is required for the Prime Offeror:

- a) Information regarding the general financial condition of the firm and specific plans for financing the proposed contract, including the latest available financial statements. If the company is currently being audited, or has been audited by the DCAA, provide the address, current telephone number, and current point of contact for the cognizant DCAA and the cognizant DCMA office. Offerors shall also include the most recent FPRP audit status, (e.g., date of most recent audit, findings, etc.) and the most recent financial capabilities audit, if performed.
- b) A summary of the Offeror’s:
  - 1. Accounting procedures and controls. Identify the fiscal year for direct and indirect rate computation purposes. Identify the date the accounting system was determined to be adequate by the cognizant ACO/DCAA. Identify the date the Offeror’s disclosure statement was approved by the cognizant ACO. If the Offeror does not have a determination from DCAA regarding its accounting system, the Offeror shall provide documentation as to why its business systems have not been reviewed or why documentation cannot be provided, and justification as to the adequacy of their accounting system.
  - 2. DCMA-approved Disclosure Statement prior to contract award in accordance with FAR 30.202-6. The Offeror shall include the report number and date of the cognizant DCMA office's determination stating that the Offeror's Disclosure Statement is adequate (attach a copy of the report). In making the responsibility determination, the Government may pursue additional reviews of the Offeror's business systems to determine adequacy.
  - 3. Property control system: Identify the date the property system was approved by the cognizant ACO.
  - 4. VETS-100: Provide evidence of compliance (FAR subpart 22.13)
  - 5. Quality assurance programs.
  - 6. Equipment and facilities relative to this effort.
  - 7. Purchasing system: Identify the date the Offeror’s purchasing system was approved by the cognizant ACO.

### **3.2.5 SECTION 7 – SMALL BUSINESS SUBCONTRACTING PLAN**

Offerors, unless otherwise exempt due to being a small business concern or a company performing outside of any State, territory, or possession of the United States, the District of Columbia, and the Commonwealth of Puerto Rico, shall, in accordance with FAR 19.7 and FAR 52.219-9, submit a Small Business Subcontracting Plan (or approved comprehensive plan), as part of Volume II. Failure to submit and negotiate a subcontracting plan acceptable to the Contracting Officer shall make the offer ineligible for award of a contract.

### **3.2.6 SECTION 8 – FOREIGN OWNED SUBCONTRACTORS**

Offerors shall identify any and all potential foreign-owned subcontractors they intend to team with for the procurement in the following format:

|                                                        |  |
|--------------------------------------------------------|--|
| Name of Subcontractor:                                 |  |
| Country of Origin:                                     |  |
| Date of executed Technical Assistance Agreement (TAA): |  |

Offerors shall provide a copy of the executed TAA within the Contracts Volume. In the event that a TAA is not in place at the time of proposal submission, the Offeror shall provide a copy of a draft TAA for Government review. The Offeror shall ensure that the TAA will be in place prior to the award of the contract. The Offeror shall ensure all applicable subcontractor flow down clauses are complied with by all subcontractors, including foreign owned.

### **3.2.7 SECTION 9 – NOTIFICATION OF THE USE OF CONTRACTOR SUPPORT AND PROPRIETARY DATA PROTECTION AGREEMENTS (PDPAs)**

Pursuant to 41 U.S.C.419, Federal Acquisition Regulation (FAR) 37.204, and other applicable laws and regulations, contractor support personnel from the below listed companies under existing contracts, will be used to assist in the review and evaluation of proposals submitted in response to this solicitation.

Contractor support personnel from Alpha Omega Group LLC and Systems Technology Forum LTD shall assist for administrative purposes only. This assistance will not include analyzing or reviewing proposals, answering technical questions, providing comments to evaluators, or any other tasks requiring the rating or scoring of the proposal itself.

**Responses to this solicitation MUST clearly state whether permission is granted allowing the contractor support identified above access to the contractor's proposal.** Should such permission be denied, the Government will review the contractor's proposal without the contractor support identified. Offerors are encouraged to execute a proposal access agreement with these support contractors via a PDPA. Offerors shall include fully executed PDPAs within the Volume II submission, if applicable. Subcontractors that provide proposal information separate from the prime contractor's proposal submittal shall clearly state whether permission is granted allowing the contractor support identified above access to the subcontractor's proposal.

The points of contact for the contractor support companies are listed below:

| <b>Company</b>               | <b>POC</b>    | <b>Contact Information Email</b> |
|------------------------------|---------------|----------------------------------|
| Alpha Omega Group LLC        | Michael Ahn   | Michael.Ahn@AlphaOGroup.com      |
| Systems Technology Forum LTD | Krista Medina | Krista.Medina@stfltd.com         |

### **3.2.8 SECURITY CLEARANCE LEVELS**

Offerors must document that facilities and personnel proposed to perform and requiring access to classified material as required by the contract possess at a minimum the security clearance levels required by Attachment 2 - ADNS MAC Form DD254 Security Classification.

(End of provision)



## Section M - Evaluation Factors for Award

**M-216-HQ001 EVALUATION CRITERIA AND BASIS FOR AWARD (NAVWAR) (APR 2025)**

The Government intends to competitively award multiple Indefinite-Delivery, Indefinite-Quantity (IDIQ) contracts utilizing the process of evaluation described herein. This source selection will be conducted in accordance with Federal Acquisition Regulation (FAR) Part 15, as supplemented by the Department of Defense (DoD) Federal Acquisition Regulation Supplement (DFARS), Navy Marine Corps Acquisition Regulation Supplement (NMCARS), and the (DoD) Source Selection Procedures, 20 August 2022.

Price or cost will not be evaluated in accordance with FAR 15.304(c)(1)(ii)(A).

(a) The contract(s) resulting from this solicitation will be awarded to all qualifying offeror(s) as defined in FAR 2.101.

(b) Proposals will be evaluated using a three-step methodology to determine the qualifying offeror(s). Step One is an evaluation of Acceptability of the Offer. Step Two is an evaluation of Technical Capability; Factor 1: ADNS Production Processes and Capacity, Factor 2: Management Approach, Factor 3: ADNS Sample Delivery Order, Factor 4: Past Performance and Factor 5: Small Business Participation (Large Business Vendors Only). Step Three is the source selection decision, where contracts will be awarded to all qualifying offerors that: 1) are determined to be a responsible source; 2) submit a technically acceptable proposal that conforms to the requirements of the solicitation; and 3) the Contracting Officer has no reason to believe would be likely to offer other than fair and reasonable pricing. The Government will not perform a tradeoff analysis.

A technically acceptable proposal is a proposal that receives a rating of Acceptable or above in all evaluation factors, other than Past Performance. For the Past Performance factor, an offeror must receive a Performance Confidence Assessment rating of Neutral Confidence, Satisfactory Confidence, or Substantial Confidence.

The Government will not evaluate price or cost as a factor under this solicitation. Instead, the Government will consider price or cost as one of the factors in the selection decision for each delivery order under this multiple award contract, in accordance with FAR 16.505(b)(1)(ii)(E).

(c) Evaluation of an offeror's proposal shall be based on the information presented in the proposal and information available to the contracting office from sources deemed appropriate. Sources typically considered include Defense Contract Audit Agency (DCAA), Defense Contract Management Administration (DCMA) offices, other contracts with same firms for similar items or services, known commercial sources such as Data Resources, Inc., Standard and Poor (S&P), etc. Proposals which are unrealistic in terms of technical or schedule commitments may be deemed to be reflective of an inherent lack of technical competence, or indicative of a failure to comprehend the complexity and risks of the proposed work and may be grounds for rejection of the proposal. If the proposed contract requires the delivery of data, the quality of organization and writing reflected in the proposal will be considered an indication of the quality of organization and writing which would be prevalent in the proposed deliverable data. Subjective judgment on the part of the Government evaluators is implicit in the entire process. An Offeror must quote on all items in this solicitation to be eligible for award.

(d) Each proposal will be evaluated using the following methodology:

**1.0 STEP ONE – ACCEPTABILITY OF OFFER****1.1 Acceptability of the Offer**

The Government will determine the acceptability of each offer on an Acceptable / Unacceptable basis. The Government will consider an offer to be acceptable when it manifests the offeror's assent, without exception or imposition of condition, to the terms and conditions of this Solicitation, including attachments and documents incorporated by reference. If an offeror takes exception to any of the terms and conditions of the Solicitation,

imposes additional conditions or omits material information required by this Solicitation, the Government may consider the offer to be unacceptable. If an offer is determined unacceptable, the proposal will not be further evaluated. Any proposal determined to have an existing unmitigated Organizational Conflict of Interest (OCI) pertaining to the prime or any of the proposed subcontractors may be removed from further consideration for award at any point during the evaluation. The Government reserves the right to change the terms and conditions of this Solicitation by amendment at any time prior to the source selection decision.

The Government intends to award contracts without discussions as permitted by FAR 15.306(a) and 52.215-1. Therefore, Offerors are cautioned not to submit an offer which takes exception to any term or condition of the Solicitation or imposes any additional condition or omits any required information. The Government reserves the right to conduct discussions and to permit Offerors to revise their proposals if it is determined to be in the best interest of the Government. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the minimum number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

## **2.0 STEP TWO – EVALUATION OF TECHNICAL CAPABILITY**

The relative importance of the evaluation factors is as follows.

- a) Factors 1 through 5 are listed in descending order of importance.
- b) Any proposal rated as “Marginal” or “Unacceptable” under any one of the evaluation factors may be eliminated from award consideration.

The evaluation factors are as follows:

### **FACTOR 1 – ADNS PRODUCTION PROCESSES AND CAPACITY**

The Government will evaluate the extent to which the Offeror’s technical proposal demonstrates an end-to-end process for producing ADNS systems, from receipt of delivery order to shipment of integrated system product to specified Government sites, and available capacity for producing and storing ADNS systems and components. The Government’s evaluation of this factor will be based on how the Offeror demonstrates their production processes and capacity to provide successful and timely production, assembly, integration, testing and delivery of ADNS systems, to include:

- a) Addressing post award Government changes to the PBL, specific to Quality Assurance, Supply Chain Risk Management, End-of-Life/End-of-Sale/End-of-Support identification, notification, and resolution, Trade Agreement Act (TAA) compliance, and how the production units are validated against the latest revision of the approved PBL and what steps the Offeror proposes to mitigate change-driven impacts to Price, Schedule and Performance (e.g. quality, delivery) for accomplishing the ADNS MAC effort.
- b) The procurement and inventory management process and procedures for ADNS hardware, to include CaaS systems, Cyber Threat Upgrades, Mission Focused Upgrades, Ancillary kits, lab equipment and spares, and how the Offeror will tailor an existing ordering and inspection process, specifically addressing receipt of equipment, storage management, change management, tools used and how they will benefit the ADNS program.
- c) The process and procedures for procuring ADNS software, identifying any differences in processes for first time software procurements vice maintenance and renewals and how the Offeror will tailor an existing process, specifically addressing ordering processes, change management, tools used and how they will benefit the ADNS program.
- d) The maximum capacity in terms of the number of ADNS systems that can be simultaneously produced and stored at any one time, and capacity to store ADNS hardware, components, kits, spares, and lab material under the ADNS MAC.

**FACTOR 2 – MANAGEMENT APPROACH**

The Government will evaluate the extent to which the Offeror's management approach demonstrates the ability to support building ADNS systems, and providing software, components, spares, and lab material in accordance with the requirements of Attachment 1 - ADNS MAC Statement of Work (SOW) to include:

- a) The process for ensuring workforce availability to meet varying production demands that addresses the ability to maintain a competent workforce during periods of minimum production (no awarded delivery orders) and to rapidly adjust their workforce to meet increased production demands of simultaneous production under multiple delivery orders.
- b) The approach to production and delivery of ADNS systems that includes program management, decision-making, cost savings, and risk and issue management strategy, to account for any technology, engineering, or design changes that may be required during delivery of ADNS systems.
- c) The approach to the procurement and delivery of software (to include maintenance and renewals), components, spares, and lab material under the ADNS MAC to include program management, use of DoD/DoN Enterprise License Agreements, ordering practices with third party Original Equipment Manufacturers and software distributors, decision-making, cost savings, and risk and issue management strategy, to account for any technology, engineering, or design changes that may be required during delivery of software, components, spares, and lab material.

**FACTOR 3 – ADNS SAMPLE DELIVERY ORDER**

The Government will evaluate the extent to which the Offeror's technical proposal demonstrates the production and the ability to build and deliver the ADNS systems based on the sample delivery order scenario to include:

- a) The management approach to production and delivery to include program management, Government engagement, decision-making, cost savings, and risk management strategy to account for any technology, engineering, or design changes that may be required during delivery of ADNS systems under the ADNS MAC.
- b) The processes, procedures, and timing for ordering material by addressing interactions with suppliers, ordering Long Lead Time Material, storage and inventory management, and what steps will be taken to mitigate change-driven impacts to Price, Schedule and Performance (e.g. quality, delivery) for accomplishing the effort under the ADNS MAC.
- c) The process and procedures for addressing post-award Government changes to the PBL and configuration management of the revisions to the approved PBL by addressing Quality Assurance, Supply Chain Risk Management, and how the production units are validated against the latest revision of the approved PBL and what steps will be taken to mitigate change-driven impacts to Price, Schedule and Performance (e.g. quality, delivery) for accomplishing the effort.
- d) Providing a detailed Integrated Master Schedule (IMS) in Adobe PDF by identifying the major program milestones, tasks and personnel resource loading, interrelationships and dependencies, critical path, integrating kits, routing of cables, obtaining and processing vendors' quotes, quality control checks, system workflow through production line, and test events. The IMS shall also address personnel resource loading to include personnel, tools, space, and power.
- e) A detailed production plan for identification and mitigation of risks, manufacturing process, build schedule, facility capabilities and plan to meet power requirements.
- f) A detailed approach to testing each system included in the sample DO scenario using Factory Acceptance Test procedures.

**FACTOR 4 - PAST PERFORMANCE**

The past performance evaluation will result in an assessment of the Offeror's probability of meeting the solicitation requirements. The Government will evaluate each Offeror's demonstrated recent and relevant record of performance in supplying products and services that meet the contract requirements. The recency and relevance of the information, source of the information, context of the data, and general trends in contractor's performance shall be considered. There are three aspects to the past performance evaluation: recency, relevancy (including context of data), and quality (including general trends in contractor performance and source of information).

**Recency.** The first aspect is to evaluate the recency of the Offeror's past performance. To be deemed recent, the work must have been performed since 1 January 2020 and demonstrate at least twelve (12) months of performance within those last five (5) years. If a reference is not deemed recent, it will not be evaluated in the second or third aspect of this evaluation factor.

**Relevancy.** The second aspect is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection. With respect to relevancy, past performance of greater relevancy will typically be a stronger predictor of future success and have more influence on the past performance confidence assessment than past performance of lesser relevance. Common aspects of relevancy include, but are not limited to, the following: similarity of product/services/support, complexity, dollar value, contract type, and extent of subcontracting/teaming. Direct experience providing similar support services to NAVWAR, PEO C4I and other Navy Systems Commands will be considered more favorably than non-Navy experience. Relevancy is defined as efforts that include production of rack-mounted, U.S. Navy Shipboard, Submarine, Airborne and Shore systems; and of similar scope, contract type, magnitude of effort, and complexity compared to the ADNS MAC SOW and Technical Data Package.

**Quality of Products or Services.** The third aspect of the past performance evaluation is to establish the overall quality of the Offeror's past performance. The past performance evaluation conducted in support of a current source selection does not establish, create, or change the existing record and history of the Offeror's past performance on past contracts; rather, the past performance evaluation process gathers information from customers on how well the Offeror performed those past contracts. Past performance information will be reviewed to determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment. A separate quality assessment rating is not required; rather, the past performance confidence assessment rating is based on the Offeror's overall record of recency, relevancy, and quality of performance. This quality assessment will be made on the basis of CPARS or Contractor Performance Evaluation Surveys submitted with the proposal, though in accordance with FAR 15.305(a)(2)(ii), the Government may consider past performance information from any other appropriate source.

At the factor level, one Performance Confidence Assessment rating will be assigned for each Offeror based on an evaluation of the merit of all individual experiences' relevancy and quality combined. Past performance references may be considered in the aggregate when determining overall relevance. If the Offeror's past performance information is unavailable or the Offeror has no record of relevant Past Performance, the Offeror will not be evaluated favorably or unfavorably on Past Performance. However, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating is worth more than a "Neutral Confidence" past performance rating in the best value tradeoff. The evaluation may take into account past performance of subcontractors that will perform major or critical aspects of the requirement when such information is relevant to the ADNS MAC Solicitation.

If the Government has no information available regarding the Offeror's past performance, that Offeror will receive a Neutral Confidence rating for Factor 4 – Past Performance.

**FACTOR 5 - SMALL BUSINESS PARTICIPATION (LARGE BUSINESS VENDORS ONLY)**

Small Business participation will be evaluated on an Acceptable/Unacceptable basis. Small Business prime Offerors will receive an 'Acceptable' for this factor.

For Large Business Offerors, the Government will evaluate the acceptability of the Offeror's proposed approach to meeting small business subcontracting goals as follows: The Government will evaluate the extent to which the proposed subcontracting goals comply with NAVWAR's desired goals. The Government will evaluate the extent to which the proposed approach demonstrates meaningful participation by each subcontractor.

| <b>Small Business Categories</b>                            | <b>NAVWAR Subcontracting Goals<br/>(Based on % of total subcontracted amount)</b> |
|-------------------------------------------------------------|-----------------------------------------------------------------------------------|
| <b>Total Small Business (includes the below categories)</b> | 28%                                                                               |
| Small Disadvantaged Business (SDB)                          | 5%                                                                                |
| Woman-Owned Small Business (WOSB)                           | 5%                                                                                |
| HUBZone                                                     | 3%                                                                                |
| Service-Disabled Veteran Owned Small Business (SDVOSB)      | 3%                                                                                |

For Large Business Offerors, the Government will evaluate the acceptability of the Offeror's record of historical achievement of small business subcontracting goals and timely payment of subcontractors as follows: The Government will evaluate the extent to which the Offeror has met small business subcontracting goals on prior contracts/orders and the extent to which subcontractors have been timely paid. The Government may consult various sources, including CPARS Assessments, Contract Performance Evaluation Surveys, and System for Award Management (SAM) and Electronic Subcontracting Reporting Systems (eSRS) databases, or any other relevant sources deemed appropriate to verify proposal statements. If, historically, the Offeror has not met small business goals, the Government will assess the Offeror's explanation of what actions the Offeror took to rectify the situation and what actions the Offeror will take to meet its proposed goals for this effort.

#### **(8) OTHER CONSIDERATIONS:**

##### **Small Business\* Subcontracting Plan**

The information provided in the Small Business Subcontracting Plan will be evaluated by the Government in accordance with FAR Part 19/DFARS Part 219 on an acceptable/unacceptable basis. The approved Small Business Subcontracting Plan shall be incorporated into any resulting contract award. It should be noted that failure to submit a Small Business Subcontracting Plan acceptable to the Contracting Officer shall make the Offeror ineligible for award of a contract. The NAVWAR Subcontracting Goals for this procurement are provided above (under Factor 5) and will be used when evaluating the Subcontracting Plan.

\*Small Business includes small business, service-disabled veteran-owned small business, HUBZone small business, small-disadvantaged business, and women-owned small business concerns.

#### **(9) EVALUATION RATINGS DEFINITIONS:**

Since it is impossible to anticipate the nature of each Offeror's proposal in advance or to describe the myriad qualities and considerations that could result in one of the above meanings for ratings, these definitions should be looked upon as examples of typical characteristics of that rating and should be used as a guide or reference rather than a rigid measure to be followed word-for-word. Evaluators will be instructed to select the rating/definition that most closely fits the value or desirability of the Offeror's proposed performance.

The Government will evaluate technical factors, Factor 1 – ADNS Production Processes and Capacity, Factor 2 – Management Approach, and Factor 3 – ADNS Sample Delivery Order on an adjectival basis, considering risk in conjunction with the significant strengths, strengths, weakness, significant weaknesses, and deficiencies in determining the ratings. The Government will utilize the combined technical/risk rating definitions from DoD's Source Selection Procedures Guide of August 2022, as detailed below.

| <b>Adjectival Rating</b> | <b>Description</b>                                                                                                                                                                                          |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Outstanding              | Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths, and/or at least one significant strength, and risk of unsuccessful performance is low. |
| Good                     | Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.           |
| Acceptable               | Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.                                       |
| Marginal                 | Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.                                                                  |
| Unacceptable             | Proposal does not meet requirements of the solicitation, and thus, contains one or more deficiencies, and is unawardable, and/or risk of performance is unacceptably high.                                  |

| <b>Adjectival Rating</b> | <b>Description</b>                                                                                                                                                                                                                                                                                                       |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Low                      | Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.                                                          |
| Moderate                 | Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.                  |
| High                     | Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties. |
| Unacceptable             | Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.                                                                                                                                                                         |

In evaluating Factor 4 - Past Performance, the Government will use the following past performance relevance and performance confidence ratings:

#### **Factor 4: Past Performance Ratings Definitions**

| <b>Past Performance Recency Ratings</b> |                          |
|-----------------------------------------|--------------------------|
| <b><u>Rating</u></b>                    | <b><u>Definition</u></b> |

|            |                                                                                                                                                      |
|------------|------------------------------------------------------------------------------------------------------------------------------------------------------|
| Recent     | Contracts/orders must have been performed since 1 January 2020 and have at least twelve (12) months of performance within those last five (5) years. |
| Not Recent | Contracts/orders not performed since 1 January 2020 and/or have less than twelve (12) months of performance within those last five (5) years.        |

**Relevancy**, as it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, or other comparable attributes of past performance examples and the source solicitation requirements; and a measure of the likelihood that the past performance is an indicator of future performance. Relevancy is defined as efforts that include production of rack-mounted, U.S. Navy Shipboard, Submarine, Airborne and Shore systems; and of similar scope, contract type, magnitude of effort, and complexity compared to the ADNS MAC Solicitation and Technical Data Package that are recent per the definition of recent in this solicitation.

| Past Performance Relevancy Ratings |                                                                                                                                                        |
|------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| <u>Rating</u>                      | <u>Definition</u>                                                                                                                                      |
| Very Relevant                      | Present/past performance effort involved <b><u>essentially the same</u></b> scope and magnitude of effort and complexities this solicitation requires. |
| Relevant                           | Present/past performance effort involved <b><u>similar</u></b> scope and magnitude of effort and complexities this solicitation requires.              |
| Somewhat Relevant                  | Present/past effort involved <b><u>some of the</u></b> scope and magnitude of effort and complexities this solicitation requires.                      |
| Not Relevant                       | Present/past effort involved <b><u>little or none of the</u></b> scope and magnitude of effort and complexities this solicitation requires.            |

**Performance Confidence Assessment** is an evaluation of the likelihood (or Government's confidence) that the Offeror will successfully perform the solicitation's requirements. The evaluation is based on the Offeror's overall record of recency, relevancy and quality of performance.

| Performance Confidence Ratings |                                                                                                                                                                                                                                                                               |
|--------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <u>Rating</u>                  | <u>Definition</u>                                                                                                                                                                                                                                                             |
| Substantial Confidence         | Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.                                                                                                              |
| Satisfactory Confidence        | Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.                                                                                                        |
| Neutral Confidence             | No recent/relevant performance record is available, or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance. |
| Limited Confidence             | Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.                                                                                                               |

|               |                                                                                                                                                                         |
|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| No Confidence | Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort. |
|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

In the evaluation of Factors 5 – Small Business Participation, the proposal will be acceptable or unacceptable. The ratings are defined as follows:

**Factor 5: Small Business Subcontracting - Evaluation Factor Ratings**

| Rating              | Definition                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|---------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Acceptable</b>   | An Acceptable proposal meets the minimum requirements of the solicitation, including addressing each requirement of Section L Instructions. The proposal demonstrates an adequate approach to meeting task order subcontracting goals with meaningful work to small business subcontractors. The proposal demonstrates an adequate record of meeting subcontracting goals on prior contracts. The Government will consider the totality of the proposal and may balance aspects of the proposal against each other in determining acceptability.                             |
| <b>Unacceptable</b> | An Unacceptable proposal does not meet the minimum requirements of the solicitation, including addressing each requirement of Section L Instructions. The proposal fails to demonstrate an adequate approach to meeting task order subcontracting goals with meaningful work to small business subcontractors. The proposal fails to demonstrate an adequate record of meeting subcontracting goals on prior contracts. The Government will consider the totality of the proposal and may balance aspects of the proposal against each other in determining unacceptability. |

In the evaluation of Factors 1, 2, 3, and 4 aspects of the proposal may be found to be advantageous or disadvantageous to the Government. These are defined as follows:

**SIGNIFICANT STRENGTH:** An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

**STRENGTH:** An aspect of an Offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

**WEAKNESS:** A flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.

**SIGNIFICANT WEAKNESS:** A flaw that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.

**DEFICIENCY:** A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

**RISK:** As it pertains to source selection, it is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical factor may involve



risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

### **3.0 STEP THREE – SOURCE SELECTION DECISION**

Contracts will be awarded to all qualifying offeror(s) that are determined to be a responsible source; submit a technically acceptable proposal that conforms to the requirements of the solicitation; and the Contracting Officer has no reason to believe would be likely to offer other than fair and reasonable pricing. The Government will not perform a tradeoff analysis.

A technically acceptable proposal is a proposal that receives a rating of Acceptable or above in all evaluation factors, other than Past Performance. For Past Performance, an offeror must receive a confidence assessment rating of Neutral Confidence, Satisfactory Confidence, or Substantial Confidence for the Past Performance factor.

(End of text)